

SOLICITATION, OFFER, AND AWARD		1. This Contract is a Rated Order under the Defense Priorities and Allocations System (DPAS) - Code of Federal Regulations - at 15 CFR 700.		RATING		PAGE OF PAGES 1 39	
2. CONTRACT NUMBER		3. SOLICITATION NUMBER USCA26R0059		4. TYPE OF SOLICITATION ☐ SEALED BID (IFB) INVITATION FOR BID ☒ NEGOTIATED (RFP) REQUEST FOR PROPOSAL		5. DATE ISSUED 03/20/2026	
7. ISSUED BY Procurement Management Division Administrative Office of the United States Courts One Columbus Circle, N.E. Suite 3-250 Washington, DC 20544-0001		CODE PMD		6. REQUISITION/PURCHASE NUMBER See Lines			
				8. ADDRESS OFFER TO (If other than Item 7)			

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid" and "bidder".

SOLICITATION			
9. Sealed offers in original and <u>1</u> copies for furnishing the supplies or services in the Schedule will be received at the place specified in item 8, or if hand carried, in the depository located in <u>N/A. Email</u> until <u>12:00 ET</u> local time <u>04/06/2026</u> <u>submission-only</u> (Hour) (Date)			
CAUTION - LATE Submissions, Modifications, and Withdrawals: See Section L, Provision No. 3-100. All offers are subject to all terms and conditions contained in this solicitation.			
10. FOR INFORMATION CALL:		A. NAME AJ M. Lee	
		B. TELEPHONE (NO COLLECT CALLS)	
		AREA CODE 202	NUMBER 502-2625
		EXTENSION	
		C. E-MAIL ADDRESS aj_lee@ao.uscourts.gov	

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OFFER (Must be fully completed by offeror)			
NOTE: Item 12 does not apply if the solicitation includes a minimum offer acceptance period.			

12. In compliance with the above, the undersigned agrees, if this offer is accepted within _____ calendar days (60 calendar days unless a different period is inserted by the offeror) from the date for receipt of offers specified above, to furnish any or all items upon which prices are offered at the set opposite each item, delivered at the designated point(s), within the time specified in the schedule.

13. DISCOUNT FOR PROMPT PAYMENT		10 CALENDAR DAYS(%) 0.00 %	20 CALENDAR DAYS(%) 0.00 %	30 CALENDAR DAYS(%) 0.00 %	0 CALENDAR DAYS(%) 0.00 %
14. ACKNOWLEDGEMENT OF AMENDMENTS (The offeror acknowledges receipt of amendments to the SOLICITATION for offerors and related documents numbered and dated):		AMENDMENT NUMBER	DATE	AMENDMENT NUMBER	DATE

15A. NAME AND ADDRESS OF OFFEROR		CODE	FACILITY	16. NAME AND TITLE OF PERSON AUTHORIZED TO SIGN OFFER (Type or Print)	
15B. TELEPHONE NUMBER		15C. CHECK IF REMITTANCE ADDRESS IS DIFFERENT FROM ABOVE - ENTER SUCH ADDRESS IN SCHEDULE.		17. SIGNATURE	18. OFFER DATE
AREA CODE	NUMBER				

AWARD (To be completed by Government)					
19. ACCEPTED AS TO ITEMS NUMBERED		20. AMOUNT		21. ACCOUNTING AND APPROPRIATION	
22. AUTHORITY FOR USING OTHER THAN FULL OPEN COMPETITION: ☐ 10 U.S.C. 3204(a) ☐ 41 U.S.C. 3304(a) ()				23. SUBMIT INVOICES TO ADDRESS SHOWN IN (4 copies unless otherwise specified)	
24. ADMINISTERED BY (if other than Item 7) Accounting Division, DAS-BAPO-ACC Administrative Office of the United States Courts One Columbus Circle, N.E., Suite 5-300 Washington, DC 20544-0001				25. PAYMENT WILL BE MADE BY	
26. NAME OF CONTRACTING OFFICER (Type or print) Vanessa Jackson				27. UNITED STATES OF AMERICA (Signature of Contracting Officer)	
				28. AWARD DATE	

IMPORTANT - Award will be made on this Form, or on Standard Form 26, or by other authorized official written notice.

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Section B - Supplies or Services and Prices/Costs

Number	Supplies or Services	Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)	
0001	MISCELLANEOUS IT EQUIPMENT Indefinite Delivery/ Indefinite Quantity- Judiciary-wide PSC:	1.000000	EA			
	Delivery Schedule:					
	<u>Delivery Number</u> 1	<u>Quantity</u> 1.000000				
Period of Performance: 08/15/2026 - 08/14/2033						
Description: Jury Management System (JMS) solution. Web Based System Design, Development, Implementation, Operations and Maintenance. Including travel, deliverables, and labor. Seven Year Ordering Period. (Firm Fixed Price)						
Reference Line: PRO260059 - 0001						
Pricing Options: Base						
Number	Supplies or Services	Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)	
1001	MISCELLANEOUS IT EQUIPMENT Indefinite Delivery/ Indefinite Quantity- Judiciary-wide PSC:	1.000000	EA			
	Delivery Schedule:					
	<u>Delivery Number</u> 1	<u>Quantity</u> 1.000000				
Period of Performance: 08/15/2026 - 08/14/2033						
Description: Clause 2-90C Option: Jury Management System (JMS) solution. Web Based System Design, Development, Implementation, Operations and Maintenance. Including travel, deliverables, and labor. Six (six) Month Optional Ordering Period. 2-90C						
Reference Line: PRO260059 - 0001						
Pricing Options:						

B.1 Minimum Guarantee and Maximum Contract Limitation

This is an Indefinite Delivery/Indefinite Quantity (IDIQ) contract. The contractor will receive one minimum guarantee of \$1,000.00 during the entire contract seven year ordering period.

The maximum limitations for orders are prescribed in Section I, Clause 4-10 Order Limitations. The estimated ceiling of this contract is \$38,000,000.00. This value may be exceeded without a modification of the contract.

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The Schedule of Items (Attachment 1 - Web-Based JMS Price Tables) is incorporated under Section J (List of Attachments). The estimates in Attachment 1 - Web Based JMS price tables are estimated values over the life of the contract and may either be less, or may exceed these quantities. There is no obligation that the maximum quantities will be fulfilled.

B-2 RESERVED

RESERVED

C.1 STATEMENT OF WORK

WEB BASED JURY MANAGEMENT SYSTEM

SEE ATTACHMEN 1- SECTION C STATEMENT OF OBJECTIVES

Clause(s) Incorporated By Reference, see Clause B-5

Clause	Title	Fill-ins
2-45	Packaging and Marking	

Section E - Inspection and Acceptance

Clause(s) Incorporated By Reference, see Clause B-5

Clause	Title	Fill-ins
2-10	Responsibility for Products	
2-5A	Inspection of Products	
2-5B	Inspection of Services	

Section F - Deliveries or Performance

LINE NUMBER/ ADDRESS CONTACT INFORMATION
DELIVERY NUMBER

0001/1 Program Administration Division
 1001/1 Administrative Office of the United States
 Courts
 One Columbus Circle, N.E.
 Suite 4-300
 Washington, DC 20544-0001

PERIOD OF PERFORMANCE

ITEM	START	END
0001	08/15/2026	08/14/2033
1001	08/15/2026	08/14/2033

Clause(s) Incorporated By Reference, see Clause B-5

Clause	Title	Fill-ins
2-25A	Delivery Terms and Contractor's Responsibilities	
2-35	F.o.b. Destination, Within Judiciary's Premises	
2-60	Stop-Work Order	
7-200	Judiciary Delay of Work	

F-1 Period of Performance

The ordering period for this Indefinite-Delivery/Indefinite-Quantity (IDIQ) contract will be for seven (7) years which will be broken into ordering years (for pricing purposes). These are not optional periods. CLIN 1001 under clause 2-90C is a six-month option to extend the contract.

The ordering years will be as follows:

Ordering Year One: 09/30/2026 to 09/29/2027

Ordering Year Two: 09/30/2027 to 09/29/2028

Ordering Year Three: 09/30/2028 to 09/29/2029

Ordering Year Four: 09/30/2029 to 09/29/2030

Ordering Year Five: 09/30/2030 to 09/29/2031

Ordering Year Six: 09/30/2031 to 09/29/2032

Ordering Year Seven: 09/30/2032 to 09/29/2033

Option 2-90C Six Month Extension: 09/30/33 to 03/31/2034

A six (6) month option extension CLIN is included and has been evaluated at time of award per Clause 2-90C. Clause 2-90D does not apply to this IDIQ, but may be applied to orders. Orders issued against this IDIQ may be executed until 03/31/2034, if the option is exercised. The period of performance of an order may not extend beyond one year of the ultimate expiration date of this IDIQ.

F-2 Deliverables

Reference Attachment xx - "Deliverables" for all contract deliverables. All deliverables will be accepted according to the deliverable schedule established in the individual task orders.

Deliverables, and the timeframe for their delivery, shall be specified. The contractor shall submit electronic copies of document deliverables to the COR and other government staff,

as necessary, via email unless otherwise specified. All document deliverables shall be made by close of business (COB) 4:30 PM EST Monday through Friday, unless stated otherwise in the task order.

All deliverables submitted in electronic format shall be free of any known computer virus or defects. If a virus or defect is found, the deliverable will not be accepted. The replacement file shall be provided within two (2) business days after notification of the presence of a virus or defect. All deliverables are property of the AO.

Clause(s) Incorporated By Reference, see Clause B-5

Clause	Title	Fill-ins
7-1	Contract Administration	

7-10 Contractor Representative

JAN 2003

(a) The contractor's representative to be contacted for all contract administration matters is as follows (*contractor complete the information*):

Name: _____

Address: _____

Telephone: _____

Email: _____

Fax: _____

(b) The contractor's representative shall act as the central point of contact with the judiciary, shall be responsible for all contract administration issues relative to this contract, and shall have full authority to act for and legally bind the contractor on all such issues. (END)

7-125 Alt I Invoices

JAN 2003

Substitute the following for paragraph (c)(4) of the basic clause:

(4) All invoices for services under this agreement shall indicate in detail the following:

(i) person performing service each day by hour and part of an hour;

(ii) services performed each day by hour and part of an hour;

(iii) rates and charges for each service so detailed; and

(iv) individual expenses charged, if allowed under this agreement.

Note: Minimum charges for portions of an hour may be allowed, if such a charging practice has been disclosed before award of this agreement.

(END)

7-5 Contracting Officer's Representative

APR 2013

(a) Upon award, a contracting officer's representative (COR) may be appointed by the contracting officer. The COR will be responsible for coordinating the technical aspects of this contract and inspecting products/services furnished hereunder; however, the COR will not be authorized to change any terms and conditions of the resultant contract, including price.

(b) The COR, if appointed, may be assigned one or more of the following responsibilities:

- (1) monitoring the contractor's performance under the contract to ensure compliance with technical requirements of the contract;
- (2) notifying the contracting officer immediately if performance is not proceeding satisfactorily;
- (3) ensuring that changes in work under the contract are not initiated before written authorization or modification is issued by the contracting officer;
- (4) providing the contracting officer a written request and justification for changes;
- (5) providing interpretations relative to the meaning of technical specifications and technical advice relative to contracting officer's written approvals, and
- (6) providing general technical guidance to the contractor within the scope of the contract and without constituting a change to the contract.

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(END)

G-1 Indefinite-Delivery/Indefinite-Quantity Contract Administration

This IDIQ contract will be administered by:

TBD

Contracting Officer's Representative

Administrative Office of the United States Courts

Court Services Office

Thurgood Marshall Federal Judiciary Building One Columbus Circle, NE

Washington, DC 20544

202-502-TBD

TBD@ao.uscourts.gov

G-2 Ordering Instructions

Firm fixed price, labor hour, or time and material contract types may be issued on task orders following the process established in this clause.

For Task Orders that have other than firm fixed priced CLINs, the IDIQ Task Order process will commence with the issuance of a Task Order Request for Proposal (TORFP) via email to the contractor by the Contracting Officer (CO). The request will state the date on which the judiciary needs to receive a response from the contractor and request a price proposal. The contractor will have at least five (5) days to provide a proposal.

The Task Order RFP (TORFP) will include the following:

- (1) Statement of Work for services;
- (2) The period of performance;
- (3) Type of Task Order;
- (4) Required deliverables (if applicable);
- (5) Security requirements (if applicable);
- (6) Any other requirements (if applicable);
- (7) The AO will identify Key personnel, if applicable, in the respective RFP.

The contractor shall submit a response to the CO by the requested due date established in the TORFP. The contractor's response shall include a narrative describing the approach to meet the SOW, and include a detailed breakdown of pricing consistent with methodology identified in the RFP. Upon submission of the proposal by the contractor, the CO will evaluate the proposal to ensure all judiciary requirements have been met.

All work to be performed under this IDIQ will commence with the issuance of a Task Order by the CO, within the scope of the IDIQ. Task Orders will be issued in writing. Task Orders may be issued throughout the term of the IDIQ depending on government needs and changing business requirements. Task Orders will be issued based on the service areas described in Section C of the IDIQ. The period of performance for Task Orders may extend up to one year beyond the expiration of the base IDIQ's period of performance.

The resultant Task Order(s) shall contain the following information:

- (1) Date of Task Order, IDIQ Number and Task Order Number;
- (2) Statement of Work for services;
- (3) Place and date of delivery or performance;
- (4) Any other pertinent information; and
- (5) The fixed price and/or ceiling value.
- (6) IDIQ CLIN reference number
- (7) Quantity and price

For services already priced at the IDIQ level, a Task Order Request for Proposal (TORFP) is not required. In this case, Contracting Officers from the Procurement Management Division will issue orders directly to the contractor using Optional Form (OF) -347 or SF1449 for services provided under the contract, at the firm fixed price(s) stipulated in Section B of the contract. Multiple orders may be issued against the contract during a fiscal year. No orders shall be issued after expiration of the contract.

The ordering Contracting Officer reserves the right to issue an emergency task order. The Contracting Officer will notify the contractor verbally, regarding what the task shall include (i.e. travel, personnel materials, etc.). The contractor shall respond with the utmost urgency and will attempt to provide a written proposal within 24 hours of that notice, if possible, based upon the information provided to the Contractor.

Funding will be provided (obligated) at the time of award, based on the order's defined requirements for the specified period of performance. Any Task Orders issued against this IDIQ shall become binding when signed by the CO and delivered to the contractor.

G-3 Payment

All invoices shall be emailed to the COR and be submitted in accordance with clause 7-125 or Alt I as appropriate. Invoices shall include the CLIN number and shall be considered accepted once electronically received by the COR.

The payment schedule will be determined in each individual IDIQ Task Order.

The Government shall render payment based on delivery and final acceptance of deliverables related to the Firm Fixed Price (FFP) CLINs and Option Firm Fixed Price (FFP) CLINs. Invoicing for each FFP CLIN is one-time and will be paid upon delivery and acceptance of the deliverable.

Invoicing for Labor Hour (LH) and Time and Materials (T&M) CLINs and Option CLINs is permitted monthly and invoices shall be submitted after the completion of the month of performance. (e.g. invoice for January shall be submitted in February).

G-4 Contract Administration Closeout

At the end of a contract line item number's (CLIN) performance period or at IDIQ Task Order expiration; and upon acceptance and payment of all invoices, the Judiciary reserves the right to modify the IDIQ Task Order and unilaterally deobligate any funding remaining not invoiced for under the subject IDIQ Task Order for closeout administration.

Data Destruction in accordance with Clause xx

G-5 Place of Performance

The principle place of performance can be at the vendor's site within the Continental United States or at the government provided work site. The place of performance will be established in the task order.

G-6 Government Furnished Equipment

For contractor personnel working off government premises, the Government will provide the applicable equipment and software to perform the requirements outlined in the statement of work of the IDIQ and issued task orders. The contractor shall be responsible for proper utilization and safeguarding of all Government property provided for contractor use. Contractor employees must immediately report damage, theft, or loss of Government property to the COR. The contractor must keep an updated report of all GFE in their possession and provide a copy of the report to the COR and the CO.

See Judiciary clause 2-80.

G-7 Government Furnished Information

Any/all information necessary to perform the tasks will be furnished by the Government as needed throughout the performance of a Task order. The contractor shall safeguard any sensitive information in accordance with clause 7-35 Disclosure of Use of Information.

48 CFR § 2452.227-70 - Government information.

Government Information (DEC 2012)

(a) *Definitions.* As used in this clause, "Government information" includes -

Contractor-acquired information, which means information acquired or otherwise collected by the Contractor on behalf of the Government in the context of the Contractor's duties under the contract.

Government-furnished information (GFI), which means information in the possession of, or directly acquired by, the Government and subsequently furnished to the Contractor for performance of a contract. GFI also includes contractor-acquired information if the contractor-acquired information is a deliverable under the contract and is for continued use under the contract. Otherwise, GFI does not include information that is created by the Contractor and delivered to the Government in accordance with the requirements of the work statement or specifications of the contract. The type, quantity, quality, and delivery requirements of such deliverable information are set forth elsewhere in the contract schedule.

(b) *Information Management and Information Security.*

(1) The Contractor shall manage, account for, and secure all Government information provided or acquired by the contractor. The Contractor shall be responsible for all Government information provided to its subcontractors. The Contractor agrees to include a requirement in each subcontract under this contract that flows down the protection from disclosure requirements.

(2) The Contractor's responsibility for Government information extends from the initial provision or acquisition and receipt of information, through stewardship, custody, and use until returned to, or otherwise disposed of, as directed by the Contracting Officer. This requirement applies to all Government information under the Contractor's accountability, stewardship, possession or control, including its subcontractors.

(c) *Use of Government information.*

(1) The Contractor shall not use any information provided or acquired under this contract for any purpose other than in the performance of this contract.

(2) The Contractor shall not modify or alter the Government information, unless authorized in writing, in advance, by the Contracting Officer.

(d) *Government-furnished information.*

(1) The Government shall deliver to the Contractor the information described below -

Description Date to be Provided

[Contracting Officer insert]

(2) The delivery and/or performance dates specified in this contract are based upon the expectation that the Government-furnished information will be suitable for contract performance and will be delivered to the Contractor by the dates stated in paragraph (d)(1) of this clause.

(i) The Government does not warrant the validity or accuracy of the Government-furnished information unless otherwise noted.

(ii) In the event that information received by the Contractor is not in a condition suitable for its intended use, the Contractor shall immediately notify the Contracting Officer in writing. Upon receipt of the Contractor's notification, the Contracting Officer shall advise the Contractor on a course of action to remedy the problem.

(iii) If either the failure of the Government to provide information to the Contractor by the dates shown in this clause or the remedial action taken under this clause to correct defective information causes an increase or decrease in the Contractor's cost of, or the time required for, the performance of any part of the work under this contract, the Contracting Officer shall consider an equitable adjustment to the contract. The Contractor shall provide to the Contracting Officer its written statement describing the general nature and amount of the equitable adjustment proposal within 30 days after the remedial action described in paragraph (ii) herein is completed, or within 30 days after the date upon which the Government failed to provide information, unless the Contracting Officer extends this period.

(3)

(i) The Contracting Officer may, by written notice, at any time -

(A) Increase or decrease the amount of Government-furnished information under this contract;

(B) Substitute other Government-furnished information for the information previously furnished, to be furnished, or to be acquired by the Contractor for the Government under this contract; or

(C) Withdraw authority to use the information.

(ii) Upon completion of any action(s) under paragraph (d)(3)(i) of this clause, and the Contractor's timely written request, the Contracting Officer shall consider an equitable adjustment to the contract.

(e) *Rights in information.* Government information is the property of the U.S. Government unless otherwise specifically identified. The specific rights in any other information acquired or created by the Contractor under this contract shall be as expressed in the "Rights in Data" clause contained in this contract.

(f) *Government access to information.* The Government shall have the right to access any Government information maintained by the contractor and any subcontractors. The Contractor shall provide the Contracting Officer, and other duly authorized Government

representatives, with access to all Government information, including access to the Contractor's facilities, as necessary, promptly upon written notification by the Contracting Officer. Such notification may be by electronic mail.

(g) Contractor liability for Government information.

(1) Unless otherwise provided for in the contract, the Contractor shall not be liable for loss, theft, damage, or destruction to the Government information furnished or acquired under this contract, except when the loss, theft, damage, or destruction is the result of the Contractor's failure to properly manage, account for, and safeguard the information in accordance with this clause.

(2) In the event of any loss, theft, damage, or destruction of Government information, the Contractor shall immediately take all reasonable actions necessary to protect the Government information from further loss, theft, damage, or destruction.

(3) The Contractor shall do nothing to prejudice the Government's rights to recover against third parties for any loss, theft, damage, or destruction of Government information.

(h) Information alteration and disposal. Except as otherwise provided for in this contract, the Contractor shall not alter, destroy, or otherwise dispose of any Government information unless expressly directed by the Contracting Officer to do so.

(i) Return of Government information to the Government. (1) The Government may require the Contractor to return Government Information to the Government at any time. Upon demand by the Contracting Officer or his/her representative, the Contractor shall return all Government information to the Government as directed by the Contracting Officer or other individual designated by the Contracting Officer.

(2) The Contractor's failure to return all information as directed, including directions regarding the time frames for delivery back to the Government and directions prescribing the form in which the data must be returned, shall be considered a breach of contract, and the Government shall have the right to physically remove the Government information from the Contractor, including removal of such information from the Contractor's physical premises and from any electronic media (e.g., Contractor's computer systems).

(3) When required to return Government information to the Government, the Contractor shall do so at no cost to the Government. The Government shall not be responsible for the cost of data format conversion and the cost of delivery, if any.

(4) The Contractor shall ensure that all Government information provided to subcontractors is returned to the Government.

(j) Equitable adjustment. Equitable adjustments under this clause shall be made in accordance with the procedures of the Changes clause. However, the Government shall not be liable for breach of contract for the following:

(1) Any delay in delivery of Government-furnished information.

(2) Delivery of Government-furnished information in a condition not suitable for its intended use.

(3) An increase, decrease, or substitution of Government-furnished information.

(4) Failure to correct or replace Government information for which the Government is responsible.

(k) Subcontracts. The Contractor shall ensure that all subcontracts under which Government information is provided to a subcontractor include the basic terms and conditions set forth in paragraphs (a), (b), (c), (f), and (h) of this clause in each subcontract. Subcontracts shall clearly describe the Government information provided to the subcontractor. The Contractor shall be responsible for all Government information provided to subcontractors.

Alternate I. When the contracting officer determines that the failure to return Government information as provided for in paragraph (i) of this clause shall result in a monetary damage to the Government, the contracting officer shall include the following additional paragraph (i)(5) of this clause. The contracting officer shall consult the requiring activity to determine an amount or percentage that accurately reflects the damages to the Government.

(5) In the event of Contractor delay in returning the Government Information to the Government, for each calendar day late, the Contracting Officer has the discretion to deduct _____ [*Contracting Officer insert dollar amount or percentage*] from the total value of the contract, and/or withhold payment from the Contractor.

(End of clause)

Clause(s) Incorporated By Reference, see Clause B-5

Clause	Title	Fill-ins
1-1	Employment by the Government	
7-55	Contractor Use of Judiciary Networks	

2-65 Key Personnel

APR 2013

(a) Individuals identified below as key personnel and accepted for this contract are expected to remain dedicated to this contract. However, in the event that it becomes necessary for the contractor to replace any of the individuals designated as key personnel, the

contractor shall request such substitutions in accordance with this clause. Substitution of key personnel will be considered under the following circumstances only:

- (1) All substitutes shall have qualifications at least equal to those of the person being replaced.
 - (2) All appointments of key personnel shall be approved in writing by the contracting officer, and no substitutions of such personnel shall be made without the advance written approval of the contracting officer.
 - (3) Except as provided in paragraph (4) of this clause, at least 30 days (60 days if security clearance is required) in advance of the proposed substitution, all proposed substitutions of key personnel shall be submitted in writing to the contracting officer, including the information required in paragraph (5) of this provision.
 - (4) The following identifies the requirements for situations where individuals proposed as key personnel become unavailable because of sudden illness, death or termination of employment. The contractor shall within 5 work days after the event, notify the contracting officer in writing of such unavailability. If the event happens after award, the contracting officer will determine if there is an immediate need for a temporary substitute and a continuing requirement for a permanent substitute for the key personnel position. The contracting officer will promptly inform the contractor of this determination. If the contracting officer specifies that a temporary substitute is required, the contractor shall as soon as is practical identify who will be performing the work as a temporary substitute. The temporary substitute will then start performance on a date mutually acceptable to the contracting officer and the contractor. Within 15 work days following the event, if the contracting officer specifies that a permanent substitute is required, the contractor shall submit, in writing, for the contracting officer's approval, the information required in (5) and (6) below, for a proposed permanent substitute for the unavailable individual. The approval process will be the same as (7) below.
 - (5) Request for substitution of key personnel shall provide a detailed explanation of the circumstances necessitating substitution, a resume of the proposed substitute, and any other information requested by the contracting officer to make a determination as to the appropriateness of the proposed substitute's qualifications. All resumes shall be signed by the proposed substitute and his/her formal (per company accepted organizational chart) direct supervisor or higher authority.
 - (6) As a minimum (or as otherwise specified in the solicitation), resumes shall include the following:
 - (a) name of person;
 - (b) functional responsibility;
 - (c) education (including, in reverse chronological order, colleges and/or technical schools attended (with dates), degree(s)/certification(s) received, major field(s) of study, and approximate number of total class hours);
 - (d) citizenship status;
 - (e) experience including, in reverse chronological order for up to ten years, area(s) or work in which a person is qualified, company and title of position, approximate starting and ending dates (month/year), concise descriptions of experience for each position held including specific experience related to the requirements of this contract; and
 - (f) certification that the information contained in the resume is correct and accurate (signature of key person and date signed, and signature of the supervisor or higher authority and date signed will be accepted as certification).
 - (7) The contracting officer will promptly notify the contractor in writing of his/her approval or disapproval of all requests for substitution of key personnel. All disapprovals will require re-submission of another proposed substitution within 15 days by the contractor.
 - (b) The following individuals are designated as key personnel under this contract: [Contracting Officer to add names upon contract award]
- (END)

7-45 Travel

APR 2013

The contractor may propose travel costs if travel is required for performance of the contract and is an authorized reimbursable expense under the contract. The extent of reimbursement for incurred travel costs will be subject to the limitations set forth in the Guide, Vol 19, Ch 4 (Judiciary Staff Travel Regulations).

(end)

H-1 Travel

Travel may be required in performance of this contract and must be approved in advance by the Contracting Officer's Representative (COR). All vendor travel shall be conducted in accordance with Clause 7-45. Materials in the form of general and administrative expenses (G&A) indirect rates do not apply to travel.

H-2 Clause 3-120A Deviation DRAFT

Clause 3-120 Order of Precedence

Include the following clause as prescribed in § 330.10.30(s) (Provisions and Clauses), except that this clause shall not be included in blanket purchase agreements or orders awarded under GSA's Multiple Award Schedule contracts. Contracting officers may also include the clause in solicitations and contracts below the judiciary's small purchase threshold.

A. Order of Precedence.

Any conflicts or inconsistencies in this solicitation or contract shall be resolved by giving precedence in the following order:

1. The schedule of supplies/services.
2. Judiciary clauses 7-175, Assignments of Claims; 7-235, Disputes; 7-135, Payments; 7-125, Invoices; 7-30 Public Use of the Name of the Federal Judiciary; 2-57 Protecting, Reporting, and Responding to Incidents Involving Sensitive Information (if included in the contract);.
3. The "Unauthorized Obligations" and "Commercial Supplier Agreements Unenforceable Clauses" paragraphs of this clause.
4. Addenda to this solicitation or contract, including any commercial supplier agreements as defined in paragraph D of this clause and as amended by the Commercial Supplier Agreements Unenforceable Clauses provision in paragraph C of this clause.
5. Solicitation provisions if this is a solicitation.
6. Contract clauses if this is a contract.
7. The Government's standard contract form.
8. Other documents, exhibits, and attachments.
9. The specification.
10. When an order utilizing clause 3-120 is placed against an indefinite delivery vehicle (IDV) or a Blanket Purchasing Agreement (BPA) that contains Federal Acquisition Regulation (FAR) clause 52.212-4, paragraph A of clause 3-120, except for A.2 (Judiciary clauses), then it shall be considered replaced with FAR 52.212-4's order of precedence provision, and section A.2 and the remaining paragraphs of clause 3-120 shall be considered "Other Compliances" and shall fit under FAR 52.212-4(s)(2) as "Other Compliances" per that clause's order of precedence.

A. Unauthorized Obligations.

1. Except as stated in paragraph (B)(2) of this clause, when any supply or service acquired under this contract is subject to any commercial supplier agreement that includes any language, provision, or clause requiring the Government to pay any future fees, penalties, interest, legal costs or to indemnify the Contractor or any person or entity for damages, costs, fees, or any other loss or liability that would create an Anti-Deficiency Act violation (31 U.S.C. 1341), the following shall govern:
 - i. Any such language, provision, or clause is unenforceable against the Government.
 - ii. Neither the Government nor any Government authorized end user shall be deemed to have agreed to such clause by virtue of it appearing in the commercial supplier agreement. If the commercial supplier agreement is invoked through an "I agree" click box or other comparable mechanism (e.g., "click-wrap" or "browse-wrap" agreements), execution does not bind the Government or any Government authorized end user to such clause.
 - iii. Any such language, provision, or clause is deemed to be stricken from the commercial supplier agreement.
1. Paragraph (B)(1) of this clause does not apply to indemnification or any other payment by the Government that is expressly authorized by statute and specifically authorized under applicable agency regulations and procedures.

A. Commercial Supplier Agreements Unenforceable Clauses.

When any supply or service acquired under this contract is subject to a commercial supplier agreement, the following language shall be deemed incorporated into the commercial supplier agreement. As used herein, "this agreement" means the commercial supplier agreement:

1. Notwithstanding any other provision of this agreement, when the end user is an agency or instrumentality of the U.S. Government, the following shall apply:
 - i. Applicability. This agreement is a part of a contract between the commercial supplier and the U.S. Government for the acquisition of the supply or service that necessitates a license or other similar legal instrument (including all contracts, task orders, and delivery orders).
 - ii. End user. This agreement shall bind the ordering activity as end user but shall not operate to bind a Government employee or person acting on behalf of the Government in his or her personal capacity.
 - iii. Law and disputes. This agreement is governed by Federal law.

- A. Any language purporting to subject the U.S. Government to the laws of a U.S. state, U.S. territory, district, or municipality, or a foreign nation, except where Federal law expressly provides for the application of such laws, is hereby deleted.
 - B. Any language requiring dispute resolution in a specific forum or venue that is different from that prescribed by applicable Federal law is hereby deleted.
 - C. Any language prescribing a different time period for bringing an action than that prescribed by applicable Federal law in relation to a dispute is hereby deleted.
- i. Continued performance. The supplier or licensor shall not unilaterally revoke, terminate or suspend any rights granted to the Government except as allowed by this contract. If the supplier or licensor believes the ordering activity to be in breach of the agreement, it shall pursue its rights in accordance with Clause 7-235 or other applicable Federal statute while continuing performance as set forth in the disputes clause.
 - ii. Arbitration; equitable or injunctive relief. In the event of a claim or dispute arising under or relating to this agreement, a binding arbitration shall not be used unless specifically authorized by agency guidance, and equitable or injunctive relief, including the award of attorney fees, costs or interest, may be awarded against the U.S. Government only when explicitly provided by statute.
 - iii. Updating terms.
 - A. After award, the Contractor may unilaterally revise commercial agreement terms if they are not material. A material change is defined as:
 - 1. Terms that change judiciary rights or obligations;
 - 2. Terms that increase judiciary prices;
 - 3. Terms that decrease overall level of service; or
 - 4. Terms that limit any other judiciary right addressed elsewhere in this contract, Blanket Purchasing Agreement (BPA), Basic Ordering Agreement (BOA), task order, or call order.
 - A. For revisions that will materially change the terms of the contract, BPA, BOA, task order, or order, the revised commercial agreement must be incorporated into the contract, BPA, BOA, task order, or order using a bilateral modification.
 - B. Any agreement license terms or conditions unilaterally revised subsequent to award that are inconsistent with any material term or provision of this BPA, contract, or order shall not be enforceable against the judiciary, and the judiciary shall not be deemed to have consented to them.
 - i. Automatic renewals. If any license or service tied to periodic payment is provided under this agreement (e.g., annual software maintenance or annual lease term), such license or service shall not renew automatically upon expiration of its current term without prior express consent by an authorized Government representative.
 - ii. Indemnification of end user. Any clause of this agreement requiring the commercial supplier or licensor to defend or indemnify the end user is hereby amended to provide that the U.S. Department of Justice has the sole right to represent the United States in any such action, in accordance with 28 U.S.C. 516.
 - iii. Audits. Any clause of this agreement permitting the commercial supplier or licensor to audit the end user's compliance with this agreement is hereby amended as follows:
 - A. Discrepancies found in an audit may result in a charge by the commercial supplier or licensor to the ordering activity. Any resulting invoice must comply with the proper invoicing requirements specified in the underlying Government contract or order.
 - B. This charge, if disputed by the ordering activity, will be resolved in accordance with the disputes clause; no payment obligation shall arise on the part of the ordering activity until the conclusion of the dispute process.
 - C. Any audit requested by the contractor will be performed at the contractor's expense, without reimbursement by the Government.
 - i. Taxes or surcharges. Any taxes or surcharges which the commercial supplier or licensor seeks to pass along to the Government as end user will be governed by the terms of the underlying Government contract or order and, in any event, must be submitted to the Contracting Officer for a determination of applicability prior to invoicing unless specifically agreed to otherwise in the Government contract.
 - ii. Non-assignment. This agreement may not be assigned, nor may any rights or obligations thereunder be delegated, without the Government's prior approval.
 - iii. Confidential information. If this agreement includes a confidentiality clause, such clause is hereby amended to state that neither the agreement nor the contract price list, as applicable, shall be deemed "confidential information." Issues regarding release of "unit pricing" or "line-item pricing" will be resolved consistent Judiciary Clause 1-15, Disclosure of Contractor Information to the Public. Notwithstanding anything in this agreement to the contrary, the Government may retain any confidential information as required by law, regulation or its internal document retention procedures for legal, regulatory or compliance purposes; provided, however, that all such retained confidential information will continue to be subject to the confidentiality obligations of this agreement.

- iv. Credit application/Master account. Any language requiring the use of a credit application or master account is hereby deleted. Credit provisions are not applicable to the judiciary.
- v. Advance payments. Except for software licenses provided by the vendor contemporaneously with the Government's payment, and publications printed or recorded in any way for the auditory or visual use of the agency, any language requiring the Government to pay for more than the value of services already provided or articles already delivered is hereby deleted unless expressly authorized in writing by the Contracting Officer and provided for in the schedule of supplies/services.
- vi. Insurance. Because the Government is self-insured, any language requiring the Government to pay for insurance is hereby deleted unless expressly authorized in writing by the Contracting Officer.
- vii. Damage deposits. Any language requiring the Government to pay a deposit for damages is hereby deleted.
- viii. In the event of a conflict, any Artificial Intelligence related section in this contract shall take precedence over any attachment that may have conflicting terms.
- ix. Any term that claims to provide authority or approval for judiciary data to be moved outside of the United States is considered inapplicable to this contract. Any movement of judiciary data outside the United States must first be approved in writing by the CO and COR.

1. If any language, provision, or clause of this agreement conflicts or is inconsistent with this clause, then the language in this clause shall prevail to the extent of such inconsistency.

A. Definitions.

Cloud computing means a model for enabling ubiquitous, convenient, on-demand network access to a shared pool of configurable computing resources (e.g., networks, servers, storage, applications, and services) that can be rapidly provisioned and released with minimal management effort or service provider interaction. This includes other commercial terms, such as on-demand self-service, broad network access, resource pooling, rapid elasticity, and measured service. It also includes commercial offerings for software-as-a-service, infrastructure-as-a-service, and platform-as-a-service.

Commercial computer software means any computer software that is a commercial product or commercial service.

Commercial supplier agreement means terms and conditions customarily offered to the public by vendors of supplies or services that meets the definition of "commercial item" set forth in the Glossary of Procurement Terms in Volume 14 (Procurement) of the Guide to Judiciary Policy intended to create a binding legal obligation on the end user.

Commercial supplier agreements are particularly common in information technology acquisitions, including acquisitions of commercial computer software and commercial technical data, but they may apply to any product or service. The term applies—

1. Regardless of the format or style of the document. For example, a commercial supplier agreement may be styled as standard terms of sale or lease, Terms of Service (TOS), End User License Agreement (EULA), or another similar legal instrument or agreement, and may be presented as part of a proposal or quotation responding to a solicitation for a contract or order;
2. Regardless of the media or delivery mechanism used. For example, a commercial supplier agreement may be presented as one or more paper documents or may appear on a computer or other electronic device screen during a purchase, software installation, other product delivery, registration for a service, or another transaction.

Computer software —

1. Means
 - i. Computer programs that comprise a series of instructions, rules, routines, or statements, regardless of the media in which recorded, that allow or cause a computer to perform a specific operation or series of operations; and
 - i. Recorded information comprising source code listings, design details, algorithms, processes, flow charts, formulas, and related material that would enable the computer program to be produced, created, or compiled.
1. Does not include computer databases or computer software documentation.

Computer software documentation means owner's manuals, user's manuals, installation instructions, operating instructions, and other similar items, regardless of storage medium, that explain the capabilities of the computer software or provide instructions for using the software.

(end)

H-3 Continuity of Operations

In the event of an emergency, disaster, or situation requiring Continuity of Operations (COOP), the Contractor shall continue to provide support under the task order at a contractor facility and/or alternate location(s). Not all contractor personnel shall be required to provide support during a COOP event. Only contractor personnel positions performing “Essential Functions” shall be required to provide support during a COOP event. The following functions are determined “Essential” under this task order:

All maintenance and support CLINs 0001-0004

Jury forms 0005-1301 through 0005-1309

0005-1006 Point to point lookup

0005-1007 Point to point tracking key

0005-3201 Texting portal look up

In the event of a COOP emergency, the Contractor shall provide a continuity plan and the costs associated with implementation within 12 hours of the event. The plan will indicate how the Contractor will continue this (service or function) without interruption until the AOUSC has returned to normal operations.

In addition to the above information, the Contractor shall refer to Attachment 24: Deliverables. Specifically, the relevant section can be found in the ‘Continuity of Operations Plan (COOP)’ subsection of the ‘Security Deliverables’ section outlined in Attachment 24.

H-4 Modifications

During the course of the IDIQ's period of performance, modifications may be necessary to add additional CLIN items, labor categories, or other that are required to complete the services under this IDIQ. Any modifications required will be negotiated with the vendor. For extensions to task orders, the vendor shall notify the Contracting Officer no later than 45 days prior to expiration of a task order to request a modification to extend. All modifications must be signed by the Contracting Officer and are not guaranteed to be issued.

H-5 Incremental Funding

Any task order that is issued as T&M or labor hour may be incrementally funded. Any task order that is incrementally funded will contain additional clauses and/or conditions to address the incremental funding such as clause 4-170. Any task order that is issued as Firm Fixed Price or have a portion of the task order that is firm fixed price will be fully funded.

H-6 Data Rights Supplement

The Government shall own of all code created under this IDIQ to modify the base COTS product.

The Government has unlimited rights to the data created in the performance of the IDIQ. Data means recorded information, regardless of the form or media on which it is recorded, including computer software and code (except to the extent the data constitutes minor modifications to limited rights data or restricted computer software as defined in Clause 6-60).

For the modified COTS product produced under this IDIQ, during the term of the IDIQ and indefinitely thereafter, the Government shall have unlimited rights to (1) to use, modify, reproduce, release, perform, display or disclose Data within the Government without restriction; and (2) to release or disclose Data outside the Government and authorize persons to whom release or disclosure has been made to use, modify, reproduce, release, perform, display, or disclose the Data for Government Purposes only.

Clause(s) Incorporated By Reference, see Clause B-5

Clause	Title	Fill-ins
1-10	Gratuities or Gifts	
1-15	Disclosure of Contractor Information to the Public	

Clause	Title	Fill-ins
1-5	Conflict of Interest	
2-20A	Incorporation of Warranty	
2-50	Continuity of Services	
2-55	Privacy or Security Safeguards	
3-105	Audit and Records	
3-205	Protest after Award	
3-25	Protecting the Judiciary's Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment	
3-300	Registration in the System for Award Management (SAM) (OCT 2023)	
3-35	Covenant Against Contingent Fees	
3-40	Restrictions on Subcontractor Sales to the Judiciary	
3-45	Anti-Kickback Procedures	
3-50	Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity	
3-55	Price or Fee Adjustment for Illegal or Improper Activity	
4-25	Indefinite Quantity	
4-5	Ordering	
5-30	Authorization and Consent	
6-40	Federal, State, and Local Taxes	
6-60	Rights in Data - General	
6-85	Commercial Computer Software License	
6-90	Notice and Assistance Regarding Patent and Copyright Infringement	
6-95	Patent Indemnity	
7-100B	Limitation of Liability (Services)	
7-110	Bankruptcy	
7-130	Interest (Prompt Payment)	
7-135	Payments	
7-140	Discounts for Prompt Payment	
7-15	Observance of Regulations/Standards of Conduct	
7-150	Extras	
7-160	Limitation on Withholding of Payments	

Clause	Title	Fill-ins
7-175	Assignment of Claims	
7-185	Changes	
7-195	Excusable Delays	
7-20	Security Requirements	
7-205	Payment for Judiciary Holidays (OCT 2023)	
7-210	Payment for Emergency Closures	
7-215	Notification of Ownership Changes	
7-220	Termination for Convenience of the Judiciary (Fixed Price)	
7-230	Termination for Default - Fixed-Price Products and Services	
7-235	Disputes	
7-25	Indemnification	
7-30	Public Use of the Name of the Federal Judiciary	
7-35	Disclosure or Use of Information	
7-40	Judiciary-Contractor Relationships	
7-65	Protection of Judiciary Buildings, Equipment, and Vegetation	
7-70	Judiciary Property Furnished "As Is"	
7-80	Competition in Subcontracting	
7-85	Examination of Records	
B-20	Computer Generated Forms	

2-135 Acquisition of EPEAT-Registered Personal Computer Products MAR 2019

(a) Definitions. As used in this clause:

"Computer" means a device that performs logical operations and processes data. Computers are composed of, at a minimum:

- (1) A central processing unit (CPU) to perform operations;
- (2) User input devices such as a keyboard, mouse, digitizer, or game controller; and
- (3) A computer display screen to output information.

Computers include both stationary and portable units, including desktop computers, integrated desktop computers, notebook computers, thin clients, and workstations. Although computers must be capable of using input devices and computer displays, as noted in (2) and (3) above, computer systems do not need to include these devices on shipment to meet this definition. This definition does not include server computers, gaming consoles, mobile telephones, portable hand-held calculators, portable digital assistants (PDAs), MP3 players, or any other mobile computing device with displays less than 4 inches, measured diagonally.

"Computer display" means a display screen and its associated electronics encased in a single housing or within the computer housing (e.g., notebook or integrated desktop computer) that is capable of displaying output information from a computer via one or more inputs such as a VGA, DVI, USB, DisplayPort, and/or IEEE 1394-2008™, Standard for High Performance Serial Bus. Examples of computer display technologies are the cathode-ray tube (CRT) and liquid crystal display (LCD).

“Desktop computer” means a computer where the main unit is intended to be located in a permanent location, often on a desk or on the floor. Desktops are not designed for portability and utilize an external computer display, keyboard, and mouse. Desktops are designed for a broad range of home and office applications.

“Integrated desktop computer” means a desktop system in which the computer and computer display function as a single unit that receives its AC power through a single cable. Integrated desktop computers come in one of two possible forms:

- (1) A system where the computer display and computer are physically combined into a single unit; or
- (2) A system packaged as a single system where the computer display is separate but is connected to the main chassis by a DC power cord and both the computer and computer display are powered from a single power supply. As a subset of desktop computers, integrated desktop computers are typically designed to provide similar functionality as desktop systems.

“Notebook computer” means a computer designed specifically for portability and to be operated for extended periods of time either with or without a direct connection to an AC power source. Notebooks must utilize an integrated computer display and be capable of operation off of an integrated battery or other portable power source. In addition, most notebooks use an external power supply and have an integrated keyboard and pointing device. Notebook computers are typically designed to provide similar functionality to desktops, including operation of software similar in functionality to that used in desktops. Docking stations are considered accessories for notebook computers, not notebook computers. Tablet PCs, which may use touch-sensitive screens along with, or instead of, other input devices, are considered notebook computers.

“Personal computer product” means a computer, computer display, desktop computer, integrated desktop computer, or notebook computer.

(b) Under this contract, the Contractor shall deliver, furnish for government use, or furnish for contractor use within judiciary facilities, only personal computer products that, at the time of submission of proposals and at the time of award, were Electronic Product Environmental Assessment Tool (EPEAT)[®] bronze-registered or higher.

(c) For information on EPEAT[®] standard, **see:** www.epa.gov/epeat.

(END)

2-20C Warranty of Services

JAN 2003

(a) Definition. "Acceptance," as used in this clause, means the act of an authorized representative of the judiciary by which the judiciary assumes for itself, or as an agent of another, approves specific services, as partial or complete performance of the contract.

(b) Notwithstanding inspection and acceptance by the judiciary or any provision concerning the conclusiveness thereof, the contractor warrants that all services performed under this contract will, at the time of acceptance, be free from defects in workmanship and conform to the requirements of this contract. The contracting officer will give written notice of any defect or nonconformance to the contractor [contracting officer will insert the specific period of time in which notice will be given to the contractor; e.g., "within 30 days from the date of acceptance by the judiciary"; within 1000 hours of use by the judiciary;" or other specified event whose occurrence will terminate the period of notice, or combination of any applicable events or period of time]. This notice will state either

- (1) that the contractor shall correct or re-perform any defective or nonconforming services; or
- (2) that the judiciary does not require correction or re-performance.

(c) If the contractor is required to correct or re-perform, it shall be at no cost to the judiciary, and any services corrected or re-performed by the contractor shall be subject to this clause to the same extent as work initially performed. If the contractor fails or refuses to correct or re-perform, the contracting officer may, by contract or otherwise, correct or replace with similar services and charge to the contractor the cost occasioned to the judiciary thereby, or make an equitable adjustment in the contract price.

(d) If the judiciary does not require correction or re-performance, the contracting officer will make an equitable adjustment in the contract price.

(END)

2-57 Protecting, Reporting, and Responding to Incidents Involving Sensitive Information (JUN 2024)

JUL 2024

Protecting, Reporting, and Responding to Incident Involving Sensitive Information (JUN 2024)

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(a) Definitions. As used in this clause—

“Breach” means the loss of control, compromise, unauthorized disclosure, unauthorized acquisition, or any similar occurrence where an unauthorized person accesses or potentially accesses Sensitive Information, or an authorized user accesses Sensitive Information for an unauthorized purpose.

“Incident” means an occurrence that—

- (1) Actually or imminently jeopardizes, without lawful authority, the integrity, confidentiality, or availability of information or an information system; or
- (2) Constitutes a violation, or imminent threat of violation, of law, security policies, security procedures, or acceptable use policies.

“Information System” means a discrete set of information resources organized for the collection, processing, maintenance, use, sharing, dissemination, or disposition of information.

“Personally Identifiable Information (PII)” means information that can identify an individual, when used alone or with other relevant data. PII may contain direct identifiers (e.g., Social Security numbers) that can identify a person uniquely or quasi-identifiers (e.g., date of birth) that can be combined with other quasi-identifiers to successfully recognize an individual. The definition of PII is not anchored to any single category of information or technology. Examples of stand-alone PII that are particularly sensitive include: Social Security numbers (SSNs), driver's license or State identification numbers, Alien Registration Numbers (A-numbers), financial account numbers, and biometric identifiers.

“Privacy Information” means both PII and Sensitive Personally Identifiable Information (SPII).

“Sensitive Information” means any data or other information for which public disclosure, or disclosure to users without a need to know to perform their jobs, can harm individuals, the U.S. government, or private organizations. Sensitive Information includes Privacy Information and the following types of information:

- (1) Agreement Information. Information received by judiciary organizations, according to agreements with other federal, state, local, tribal, territorial, or private sector partners, that is required to be protected under the agreement with that partner or other applicable laws.
- (2) Procurement Information. Information related to procurements that is considered sensitive and is not normally shared with the public outside official processes. This includes internal information and documents related to procurements, source selection information, vendor proposals, and submitted information marked as proprietary or sensitive. This does not include the contractor's own proposal(s) or contract(s) with the judiciary.
- (3) Information Systems Vulnerability Information (ISVI).
 - (A) Information technology (IT) systems data (e.g., systems inventories, enterprise architecture models) that reveal infrastructure used for servers, desktops, and networks; application name, version, and release; switching, router, and gateway information; interconnections and access methods; and mission or business use or need.
 - (B) Information about developing or current technology, the release of which could hinder judiciary objectives, compromise a technological advantage or countermeasure, cause a denial of service, or provide an adversary with sufficient information to clone, counterfeit, or circumvent a process or system.
 - (C) System vulnerability or weakness information that could be used to compromise the confidentiality, integrity, or availability of an information system.
- (4) Personnel Security Information. Information that could result in physical risk to judiciary personnel.
- (5) Physical Security Information. Information related to the protection of judiciary buildings, grounds, or property, including reviews or reports that illustrate or disclose facility infrastructure or security vulnerabilities. Examples include threat assessments, system security plans, security diagrams for judiciary buildings, contingency plans, risk management plans, business impact analysis studies, and certification and accreditation documentation.
- (6) Court Related Information. Sealed cases, sealed documents or other information marked as sensitive by a court. This includes Highly Sensitive Documents (HSD), which are documents or other materials that contain sensitive, but unclassified, information that warrants exceptional handling and storage procedures to prevent significant consequences from unauthorized access or disclosure.
- (7) Privileged/confidential Information. Information protected through recognized confidential relationships.
- (8) Official Business Information. Proposed budgets, draft plans or policies, other information intended only for consideration by internal decision makers or other confidential audiences.

“Sensitive Personally Identifiable Information (SPII)” is a subset of PII that if lost, compromised, or disclosed without authorization, could result in substantial harm, embarrassment, inconvenience, or unfairness to an individual.

- (1) Multiple pieces of information, when combined, may pose an increased risk of harm to the individual. SPII may consist of any grouping of information that contains an individual's name or other unique identifier, plus one or more of the following elements:
 - (A) Truncated SSN (e.g., last four digits);
 - (B) Birthdate (month, day, and year);
 - (C) Citizenship or immigration status;
 - (D) Ethnic or religious affiliation;
 - (E) Sexual orientation;
 - (F) Criminal history;
 - (G) Medical information; and
 - (H) System authentication information (e.g., mother's birth name, account passwords, personal identification numbers (PINs)).
- (2) Other PII (e.g., list of employees and their performance ratings, unlisted home address, unlisted phone number) that may present an increased risk of harm to the individual depending on its context. The context includes the purpose for which the PII was

collected, maintained, and used. The same information in different contexts can reveal additional information about the impacted individual.

(b) Accessing and Protecting Sensitive Information

(1) Contractor roles and responsibilities regarding Sensitive Information. Before the contractor shall have access to Sensitive Information, the contractor shall coordinate with the contracting officer's representative (COR) about the contractor's roles and responsibilities regarding the Sensitive Information, and how an incident or suspected incident will be handled consistent with this clause and judiciary policies and procedures. Before they may access the Sensitive Information, the contractor and their staff and subcontractors shall complete all forms, trainings, and briefings as may be necessary for security or other reasons.

(2) Training. Contractors that have access to Sensitive Information as part of this contract shall provide their staff with training before they access Sensitive Information, and then at least annually thereafter. The training shall comply with this clause and the training shall cover how to properly handle and safeguard judiciary Sensitive Information and how to identify and report incidents or suspected incidents regarding judiciary Sensitive Information consistent with this clause. The contractor shall provide an initial report, and then an annual report each year after that, to the COR that shows that contractor staff and any subcontractor staff working on the contract have all successfully completed such training. The Contractor shall also provide the COR confirmation that any new staff or subcontractor staff that join the contract after the contract has begun have also successfully completed such training.

(3) Access. Contractor shall have access only to those areas of judiciary Sensitive Information resources explicitly stated in this contract or approved by the contracting officer or COR in writing, as necessary for performance of the work under this contract. Any attempts by contractor personnel to gain access to any information resources not expressly authorized by the terms and conditions in this contract, or as approved in writing by the contracting officer or COR, are strictly prohibited. If this clause is violated, the judiciary will take appropriate actions regarding the contract and the individual(s) involved.

(4) Protection Requirements

(A) Contractor shall safeguard all Sensitive Information and shall take reasonable measures to prevent the unauthorized use, disclosure, or loss of Sensitive Information. This includes Sensitive Information in any medium or form, including electronic, oral, or paper.

(B) Contractor and their subcontractors shall safeguard Sensitive Information whether it resides on judiciary owned and operated information systems, judiciary owned and contractor-operated information systems, contractor-owned and/or operated information systems operating on behalf of the judiciary, and any situation where contractor and/or subcontractor employees may have access to Sensitive Information because of their relationship with the judiciary.

(C) Sensitive Information shall not be stored on a mobile device or portable electronic media and shall be handled with awareness of the surroundings, so that the Sensitive Information is not disclosed to unauthorized individuals. Sensitive Information shall be secured when unattended or not in use. If performance of the contract requires the contractor to access Sensitive Information on a mobile device or portable electronic media, they shall notify the contracting officer and COR and provide details on the use case required and how such use will comply with this clause and all other applicable policies and guidelines. The COR will work with the contractor and determine if such a use case is acceptable. The contractor shall not use or store Sensitive Information on a mobile device or portable electronic media until the contracting officer provides acceptance of the use case.

(D) Contractor shall encrypt Sensitive Information if the Sensitive Information is in transit or is stored outside of judiciary networks. This includes any Sensitive Information that may reside on, or transit contractor-owned or operated information systems.

(E) All Sensitive Information must be appropriately labeled, secured, and be properly returned, disposed of, or sanitized when no longer needed or at the end of the contract. See section (e) of this clause for more guidance on returning, sanitizing, and disposing of judiciary Sensitive Information.

(F) Removal. The contracting officer may require the contractor to prohibit individuals from working on the contract if the judiciary deems their initial or continued employment on the contract contrary to the public interest for any reason, including, but not limited to, carelessness, insubordination, incompetence, or security concerns.

(c) Incident Reporting Requirements

(1) Contractors and subcontractors shall report all known or suspected incidents to the Security Operations Center (SOC), which is staffed 24 hours per day, seven days per week.

(A) When reporting incidents to the SOC, contractors and subcontractors shall submit the report by:

(i) email to soc@ao.uscourts.gov with courtesy copy to the contracting officer and COR using the contact information identified in the contract, or

(ii) phone call to **202-502-4370**, in which case the contractor must notify the contracting officer and COR immediately after reporting to the SOC.

(B) Contractors and subcontractors shall report all known or suspected incidents involving PII or SPII within one hour of discovery. All other incidents shall be reported within eight hours of discovery.

(C) Subcontractors shall notify the prime contractor if they have reported a known or suspected incident to the SOC. Lower tier subcontractors shall also notify their higher tier subcontractor, until the prime contractor is reached.

(2) The judiciary will determine whether information exposed in an unauthorized disclosure or security breach of information under the contractor's control or in an information system under the contractor's control at the time of the incident is Sensitive Information, PII, or SPII by performing an assessment of the specific risk that an individual could be identified using the exposed information with other information that is linked or linkable to the individual. Information that is not PII when considered alone can become PII or SPII whenever additional information becomes available, in any medium or from any source, that would make it

possible to identify an individual. Certain data elements are particularly sensitive and may alone present an increased risk of harm to an individual. Final determination of the categorization of exposed information as Sensitive Information, PII, or SPII will be made in writing by the contracting officer.

(3) Sensitive Information transmitted via email shall be protected by encryption. When using regular email channels, contractors and subcontractors shall not include any Sensitive Information in the subject or body of any email. The Sensitive Information shall be included as a password-protected attachment with the password provided under separate cover, including as a separate email.

Recipients of Sensitive Information shall comply with any email restrictions imposed by the originator.

(4) No incident may, by itself, be interpreted as evidence that the contractor or subcontractor has failed to provide adequate information security safeguards for Sensitive Information or has otherwise failed to meet the requirements of the contract.

(5) If an incident involves PII or SPII, contractors and subcontractors shall also provide as many of the following data elements that are available at the time the incident is reported, with any remaining data elements provided within 24 hours of submission of the initial incident report:

- (A) Unique Entity Identifier (UEI);
- (B) Contract numbers affected, unless all contracts by the company are affected;
- (C) Facility CAGE code, if the location of the event is different than the prime contractor location;
- (D) Point of contact (POC), if different than the POC recorded in the System for Award Management (address, position, telephone, and email);
- (E) Contracting officer POC (address, telephone, and email);
- (F) Contract clearance level;
- (G) Name of subcontractor and CAGE code, if this was an incident on a subcontractor network;
- (H) Government programs, platforms, or systems involved;
- (I) Location(s) of incident;
- (J) Date and time the incident was discovered;
- (K) Server names where Privacy Information resided at the time of the incident, both at the contractor and subcontractor level;
- (L) Description of the government PII or SPII contained within the system; and
- (M) Any additional information relevant to the incident.

(d) Incident Response Requirements

(1) All determinations by the judiciary related to incidents, including response activities, will be made in writing by the contracting officer.

(2) The contractor shall provide full access and cooperation for all activities determined by the government to be required to ensure an effective incident response, including providing all requested images, log files, and event information to facilitate rapid resolution of incidents.

(3) Incident response activities determined to be required by the government may include, but are not limited to, the following:

- (A) Inspections;
- (B) Investigations;
- (C) Forensic reviews;
- (D) Data analyses and processing; and
- (E) Revocation of the Authority to Operate (ATO), if applicable.

(4) The contractor shall immediately preserve and protect images of known affected information systems and all available monitoring or packet capture data. The monitoring or packet capture data shall be retained for at least 180 days from submission of the incident report to allow the judiciary to request the media or decline interest.

(5) The judiciary, at its sole discretion, may obtain assistance from other Federal agencies and/or third-party firms to aid in incident response activities.

(e) Certificate of Sanitization of Government and Government-Activity-Related Files and Information

Upon the conclusion of the contract by expiration, termination, cancellation, or as otherwise indicated in the contract, the contractor shall return all Sensitive Information to the judiciary and/or destroy it physically and/or logically as identified in the contract, unless the contract states that return and/or destruction of Sensitive Information is not required. Destruction shall conform to the guidelines for media sanitization contained in NIST SP 800-88, Guidelines for Media Sanitization. The contractor shall certify and confirm the sanitization of all government and government-activity related files and information. The contractor shall submit the certification to the COR and contracting officer following the template provided in NIST SP 800-88, Guidelines for Media Sanitization, Appendix G.

(f) Other Reporting Requirements

Incident reporting required by this clause does not rescind the contractor's responsibility for other incident reporting pertaining to its information systems under other clauses that may apply to its contract(s), or as a result of other applicable statutory or regulatory requirements, or other government requirements.

(g) PII and SPII Incident Notification Requirements

(1) All determinations by the judiciary related to notifications to affected individuals and/or federal agencies and related services (e.g., credit monitoring) will be made in writing by the contracting officer.

(2) No later than five business days after being directed by the contracting officer, or as otherwise required by applicable law, the contractor shall notify any individual whose PII or SPII was either under the control of the contractor or resided in an information system under control of the contractor at the time the incident occurred. The method and content of any notification by the contractor

shall be coordinated with, and subject to prior written approval by, the contracting officer. The contractor shall not proceed with notification unless directed in writing by the contracting officer.

(3) Subject to government analysis of the incident and direction to the contractor regarding any resulting notification, the notification method may consist of letters to affected individuals sent by first-class mail, electronic means, or general public notice, as approved by the contracting officer. Notification may require the contractor's use of address verification and/or address location services. At a minimum, the notification shall include:

- (A) A brief description of the incident;
- (B) A description of the types of PII or SPII involved;
- (C) A statement as to whether the PII or SPII was encrypted or protected by other means;
- (D) Steps individuals may take to protect themselves;
- (E) What the contractor and/or the government are doing to investigate the incident, mitigate the incident, and protect against any future incidents; and
- (F) Information identifying who individuals may contact for additional information.
- (h) Credit Monitoring Requirements

The contracting officer may direct the contractor to:

- (1) Provide notification to affected individuals, as described in paragraph (g)(2).
- (2) Provide credit monitoring services to individuals whose PII or SPII was under the control of the contractor or resided in the information system at the time of the incident for a period beginning the date of the incident and extending not less than 18 months from the date the individual is notified. Credit monitoring services shall be provided from a company with which the contractor has no affiliation. At a minimum, credit monitoring services shall include:

- (A) Triple credit bureau monitoring;
- (B) Daily customer service;
- (C) Alerts provided to the individual for changes and fraud; and
- (D) Assistance to the individual with enrollment in the services and the use of fraud alerts.
- (3) Establish a dedicated call center. Call center services shall include:
 - (A) A dedicated telephone number to contact customer service within a fixed period;
 - (B) Information necessary for enrollees to access credit reports and credit scores;
 - (C) Escalation of calls that cannot be handled by call center staff, to call center management or AOUSC, as appropriate;
 - (D) Weekly reports on call center volume, issue escalation, and other key metrics;
 - (E) Customized frequently asked questions, approved in writing by the contracting officer in coordination with the Judiciary Breach Response Team (BRT); and
 - (F) Information for enrollees to contact customer service and fraud resolution representatives for credit monitoring assistance.

(i) Subcontracts

- (1) The contractor shall insert this clause in all subcontracts and require subcontractors to include this clause in all lower tier subcontracts when subcontractor employees will:

- (A) have access to Sensitive Information;
- (B) have access to or handle systems containing Sensitive Information;
- (C) collect or maintain Sensitive Information on behalf of the Judiciary; or
- (D) use a subcontractor information system(s) to process, store, or transmit Sensitive Information.

(2) Any violation by a subcontractor of any of the provisions established in this clause will be attributed to the contractor.

(3) Any breach or incident, as defined in paragraph (a) Definitions of this clause, experienced by a subcontractor will be attributed to the contractor for the purpose of triggering contractor compliance with the requirements in paragraphs (c) Incident Reporting Requirements, (d) Incident Response Requirements, (f) Other Reporting Requirements, (g) PII and SPII Incident Notification Requirements, and (h) Credit Monitoring Requirements, of this clause.

(end)

2-80 Judiciary Property

JAN 2003

(a) Title to judiciary property provided under this contract remains in the judiciary. The contractor may use the judiciary property only in connection with this contract. The contractor shall secure judiciary property and maintain adequate property control records in accordance with sound industrial practice and shall make them available for judiciary inspection at all reasonable times.

(b) Upon delivery of judiciary property to the contractor, the contractor assumes the risk and responsibility for its loss or damage, except:

- (1) for reasonable wear and tear;
- (2) to the extent property is consumed in performing the contract; or
- (3) as otherwise provided in the contract.

(c) Upon completing this contract, the contractor shall follow the contracting officer's instructions regarding the disposition of all judiciary property not consumed in performing this contract or previously delivered to the judiciary. The contractor shall prepare for shipment, deliver F.o.b. origin, or dispose of the judiciary property, as directed or authorized by the contracting officer. The net

proceeds of any such disposal will be credited to the contract price or will be paid to the judiciary as directed by the contracting officer.

(d) The items of property are listed in an inventory of items attached to this contract and the contractor shall notify the judiciary on any required adjustments.

(END)

2-90C Option to Extend Services

APR 2013

The judiciary may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The contracting officer may exercise the option by written notice to the contractor no later than 60 days calendar days prior to the contract's current expiration date.

(END)

2-90D Option to Extend the Term of the Contract

APR 2013

(a) The judiciary may extend the term of this contract by written notice to the contractor no later than TEN (10) calendar days prior to the contract's current expiration date; provided that the judiciary gives the contractor a preliminary written notice of its intent to extend at least TEN (10) calendar days [60 days unless a different number of days is inserted] before the contract expires. The preliminary notice does not commit the judiciary to an extension.

(b) If the judiciary exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed SEVEN (7) YEARS SIX (6) MONTHS OR 90 MONTHS.

(END)

3-120A Order of Precedence (Deviation)

AUG 2025

A. Order of Precedence.

Any conflicts or inconsistencies in this solicitation or contract shall be resolved by giving precedence in the following order:

- (1) The schedule of supplies/services.
- (2) Judiciary clauses 7-175, Assignments of Claims; 7-235, Disputes; 7-135, Payments; and 7-125, Invoices.
- (3) The "Unauthorized Obligations" and "Commercial Supplier Agreements Unenforceable Clauses" paragraphs of this clause.
- (4) Addenda to this solicitation or contract, including any commercial supplier agreements as defined in paragraph D of this clause and as amended by the Commercial Supplier Agreements Unenforceable Clauses provision in paragraph C of this clause.
- (5) Solicitation provisions if this is a solicitation.
- (6) Contract clauses if this is a contract.
- (7) The Government's standard contract form.
- (8) Other documents, exhibits, and attachments.
- (9) The specification.

When an order utilizing clause 3-120A is placed against an indefinite delivery vehicle (IDV) or a Blanket Purchasing Agreement (BPA) that contains Federal Acquisition Regulation (FAR) clause 52.212-4, paragraph A of clause 3-120A shall be considered replaced with FAR 52.212-4's order of precedence provision, and the remaining paragraphs of clause 3-120A shall be considered "Other Compliances" and shall fit under FAR 52.212-4(s)(2) as "Other Compliances" per that clause's order of precedence.

B. Unauthorized Obligations.

(1) Except as stated in paragraph (B)(2) of this clause, when any supply or service acquired under this contract is subject to any commercial supplier agreement that includes any language, provision, or clause requiring the Government to pay any future fees, penalties, interest, legal costs or to indemnify the Contractor or any person or entity for damages, costs, fees, or any other loss or liability that would create an Anti-Deficiency Act violation (31 U.S.C. 1341), the following shall govern:

(i) Any such language, provision, or clause is unenforceable against the Government.

(ii) Neither the Government nor any Government authorized end user shall be deemed to have agreed to such clause by virtue of it appearing in the commercial supplier agreement. If the commercial supplier agreement is invoked through an "I agree" click box or other comparable mechanism (e.g., "click-wrap" or "browse-wrap" agreements), execution does not bind the Government or any Government authorized end user to such clause.

(iii) Any such language, provision, or clause is deemed to be stricken from the commercial supplier agreement.

(2) Paragraph (B)(1) of this clause does not apply to indemnification or any other payment by the Government that is expressly authorized by statute and specifically authorized under applicable agency regulations and procedures.

C. Commercial Supplier Agreements Unenforceable Clauses.

When any supply or service acquired under this contract is subject to a commercial supplier agreement, the following language shall be deemed incorporated into the commercial supplier agreement. As used herein, "this agreement" means the commercial supplier agreement:

(1) Notwithstanding any other provision of this agreement, when the end user is an agency or instrumentality of the U.S. Government, the following shall apply:

(i) Applicability. This agreement is a part of a contract between the commercial supplier and the U.S. Government for the acquisition of the supply or service that necessitates a license or other similar legal instrument (including all contracts, task orders, and delivery orders).

(ii) End user. This agreement shall bind the ordering activity as end user but shall not operate to bind a Government employee or person acting on behalf of the Government in his or her personal capacity.

(iii) Law and disputes. This agreement is governed by Federal law.

(A) Any language purporting to subject the U.S. Government to the laws of a U.S. state, U.S. territory, district, or municipality, or a foreign nation, except where Federal law expressly provides for the application of such laws, is hereby deleted.

(B) Any language requiring dispute resolution in a specific forum or venue that is different from that prescribed by applicable Federal law is hereby deleted.

(C) Any language prescribing a different time period for bringing an action than that prescribed by applicable Federal law in relation to a dispute is hereby deleted.

(iv) Continued performance. The supplier or licensor shall not unilaterally revoke, terminate or suspend any rights granted to the Government except as allowed by this contract. If the supplier or licensor believes the ordering activity to be in breach of the agreement, it shall pursue its rights in accordance with Clause 7-235 or other applicable Federal statute while continuing performance as set forth in the disputes clause.

(v) Arbitration; equitable or injunctive relief. In the event of a claim or dispute arising under or relating to this agreement, a binding arbitration shall not be used unless specifically authorized by agency guidance, and equitable or injunctive relief, including the award of attorney fees, costs or interest, may be awarded against the U.S. Government only when explicitly provided by statute.

(vi) Updating terms.

(A) After award, the Contractor may unilaterally revise commercial agreement terms if they are not material. A material change is defined as:

- (1) Terms that change judiciary rights or obligations;
- (2) Terms that increase judiciary prices;
- (3) Terms that decrease overall level of service; or
- (4) Terms that limit any other judiciary right addressed elsewhere in this contract, Blanket Purchasing Agreement (BPA), Basic Ordering Agreement (BOA), task order, or call order.

(B) For revisions that will materially change the terms of the contract, BPA, BOA, task order, or order, the revised commercial agreement must be incorporated into the contract, BPA, BOA, task order, or order using a bilateral modification.

(C) Any agreement license terms or conditions unilaterally revised subsequent to award that are inconsistent with any material term or provision of this BPA, contract, or order shall not be enforceable against the judiciary, and the judiciary shall not be deemed to have consented to them.

(vii) Automatic renewals. If any license or service tied to periodic payment is provided under this agreement (e.g., annual software maintenance or annual lease term), such license or service shall not renew automatically upon expiration of its current term without prior express consent by an authorized Government representative.

(viii) Indemnification of end user. Any clause of this agreement requiring the commercial supplier or licensor to defend or indemnify the end user is hereby amended to provide that the U.S. Department of Justice has the sole right to represent the United States in any such action, in accordance with 28 U.S.C. 516.

(ix) Audits. Any clause of this agreement permitting the commercial supplier or licensor to audit the end user's compliance with this agreement is hereby amended as follows:

(A) Discrepancies found in an audit may result in a charge by the commercial supplier or licensor to the ordering activity. Any resulting invoice must comply with the proper invoicing requirements specified in the underlying Government contract or order.

(B) This charge, if disputed by the ordering activity, will be resolved in accordance with the disputes clause; no payment obligation shall arise on the part of the ordering activity until the conclusion of the dispute process.

(C) Any audit requested by the contractor will be performed at the contractor's expense, without reimbursement by the Government.

(x) Taxes or surcharges. Any taxes or surcharges which the commercial supplier or licensor seeks to pass along to the Government as end user will be governed by the terms of the underlying Government contract or order and, in any event, must be submitted to the Contracting Officer for a determination of applicability prior to invoicing unless specifically agreed to otherwise in the Government contract.

(xi) Non-assignment. This agreement may not be assigned, nor may any rights or obligations thereunder be delegated, without the Government's prior approval.

(xii) Confidential information. If this agreement includes a confidentiality clause, such clause is hereby amended to state that neither the agreement nor the contract price list, as applicable, shall be deemed "confidential information." Issues regarding release of "unit pricing" or "line-item pricing" will be resolved consistent Judiciary Clause 1-15, Disclosure of Contractor Information to the Public. Notwithstanding anything in this agreement to the contrary, the Government may retain any confidential information as required by law, regulation or its internal document retention procedures for legal, regulatory or compliance purposes; provided, however, that all such retained confidential information will continue to be subject to the confidentiality obligations of this agreement.

(xiii) Credit application/Master account. Any language requiring the use of a credit application or master account is hereby deleted. Credit provisions are not applicable to the judiciary.

(xiv) Advance payments. Except for software licenses provided by the vendor contemporaneously with the Government's payment, and publications printed or recorded in any way for the auditory or visual use of the agency, any language requiring the Government to pay for more than the value of services already provided or articles already delivered is hereby deleted unless expressly authorized in writing by the Contracting Officer and provided for in the schedule of supplies/services.

(xv) Insurance. Because the Government is self-insured, any language requiring the Government to pay for insurance is hereby deleted unless expressly authorized in writing by the Contracting Officer.

(xvi) Damage deposits. Any language requiring the Government to pay a deposit for damages is hereby deleted.

(2) If any language, provision, or clause of this agreement conflicts or is inconsistent with the preceding paragraph (C)(1), the language, provisions, or clause of paragraph (C)(1) shall prevail to the extent of such inconsistency.

D. Definitions.

Cloud computing means a model for enabling ubiquitous, convenient, on-demand network access to a shared pool of configurable computing resources (e.g., networks, servers, storage, applications, and services) that can be rapidly provisioned and released with minimal management effort or service provider interaction. This includes other commercial terms, such as on-demand self-service, broad network access, resource pooling, rapid elasticity, and measured service. It also includes commercial offerings for software-as-a-service, infrastructure-as-a-service, and platform-as-a-service.

Commercial computer software means any computer software that is a commercial product or commercial service.

Commercial supplier agreement means terms and conditions customarily offered to the public by vendors of supplies or services that meets the definition of "commercial item" set forth in the Glossary of Procurement Terms in Volume 14 (Procurement) of the Guide to Judiciary Policy intended to create a binding legal obligation on the end user. Commercial supplier agreements are particularly common in information technology acquisitions, including acquisitions of commercial computer software and commercial technical data, but they may apply to any product or service. The term applies—

(1) Regardless of the format or style of the document. For example, a commercial supplier agreement may be styled as standard terms of sale or lease, Terms of Service (TOS), End User License Agreement (EULA), or another similar legal instrument or agreement, and may be presented as part of a proposal or quotation responding to a solicitation for a contract or order;

(2) Regardless of the media or delivery mechanism used. For example, a commercial supplier agreement may be presented as one or more paper documents or may appear on a computer or other electronic device screen during a purchase, software installation, other product delivery, registration for a service, or another transaction.

Computer software —

(1) Means

(i) Computer programs that comprise a series of instructions, rules, routines, or statements, regardless of the media in which recorded, that allow or cause a computer to perform a specific operation or series of operations; and

(ii) Recorded information comprising source code listings, design details, algorithms, processes, flow charts, formulas, and related material that would enable the computer program to be produced, created, or compiled.

(2) Does not include computer databases or computer software documentation.

Computer software documentation means owner's manuals, user's manuals, installation instructions, operating instructions, and other similar items, regardless of storage medium, that explain the capabilities of the computer software or provide instructions for using the software.

(end)

If the contractor has knowledge that any actual or potential labor dispute is delaying or threatens to delay the timely performance of this contract, the contractor shall immediately give notice, including all relevant information, to the contracting officer.
(END)

4-10 Order Limitations

JUN 2014

(a) *Minimum order.* When the judiciary requires products or services covered by this contract in an amount less than \$500.00, the judiciary is not obligated to purchase, nor is the contractor obligated to furnish, those products or services under this contract.

(b) *Maximum order.* The contractor is not obligated to honor:

(1) any order for a single item in excess of \$350,000.00;

(2) any order for a combination of items in excess of \$2,000,000.00; or

(3) a series of orders from the same ordering office in the course of Thirty (30) days that together call for quantities exceeding the limitations stated in subparagraph (b)(1) or (b)(2) above.

(c) If this is a requirements contract, (i.e. includes Clause 4-20, Requirements) the judiciary is not required to order a part of any one requirement from the contractor if that requirement exceeds the maximum-order limitations stated in paragraph (b) above.

(d) Notwithstanding paragraphs (b) and (c) of this clause, the contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within Five (5) days after issuance, with written notice stating the contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the judiciary may acquire the products or services from another source.

(end)

4-30 Payment (Time-and-Materials and Labor-Hour Contracts)

APR 2011

(a) The judiciary will pay the contractor as follows upon submission of invoices or vouchers approved in writing by the contracting officer or the contracting officer's authorized representative:

(1) *Hourly rate.*

(i) Hourly rate means the rate(s) prescribed in the contract for payment for labor that meets the labor category qualifications of a labor category specified in the contract that are --

- Performed by the contractor;
- Performed by subcontractors; or
- Transferred between divisions, subsidiaries, or affiliates of the contractor under a common control.

(ii) The amounts will be computed by multiplying the appropriate hourly rates prescribed in the contract by the number of direct labor hours performed.

(iii) The hourly rates shall be paid for all labor performed on the contract that meets the labor qualifications specified in the contract.

Labor hours incurred to perform tasks for which labor qualifications were specified in the contract will not be paid to the extent the work is performed by employees that do not meet the qualifications specified in the contract, unless specifically authorized by the contracting officer.

(iv) The hourly rates will include wages, indirect costs, general and administrative expense, and profit. Fractional parts of an hour will be payable on a prorated basis.

(v) Vouchers may be submitted once each month (or at more frequent intervals if approved in writing by the contracting officer). The contractor will substantiate vouchers (including any subcontractor hours reimbursed at the hourly rate in the contract) by evidence of actual payment and by -

(A) individual daily job timekeeping records;

(B) records that verify the employees meet the qualifications for the labor categories specified in the contract; or

(C) other substantiation approved in writing by the contracting officer.

(vi) Promptly after receipt of each substantiated voucher, the judiciary will, except as otherwise provided in this contract, and subject to the terms of paragraph (e) of this section, pay the voucher as approved by the contracting officer or authorized representative.

(vii) Unless otherwise prescribed in the contract, the contracting officer may unilaterally issue a contract modification requiring the contractor to withhold amounts from its billings until a reserve is set aside in an amount that the contracting officer considers necessary to protect the judiciary's interests. The contracting officer may require a withhold of five percent of the amounts due under paragraph (a) of this clause, but the total amount withheld for the contract may not exceed \$50,000. The amounts withheld will be retained until the contractor executes and delivers the release required by paragraph (g) of this clause.

(viii) Unless the contract prescribes otherwise, the hourly rates in the contract will not be varied by virtue of the contractor having performed work on an overtime basis. If no overtime rates are provided in the contract and overtime work is approved in writing in advance by the contracting officer, overtime rates may be negotiated. Failure to agree upon these overtime rates will be treated as a dispute under the Disputes clause of this contract. If the contract provides rates for overtime, the premium portion of those rates will be reimbursable only to the extent the overtime has been approved in writing in advance by the contracting officer.

(b) *Materials.*

(1) For the purposes of this clause -

- (i) Direct materials means those materials that enter directly into the end product, or that are used or consumed directly in connection with the furnishing of the end product or service.
- (ii) Materials means -
 - (A) Direct materials, including supplies transferred between divisions, subsidiaries, or affiliates of the contractor under a common control;
 - (B) Subcontracts for supplies and incidental services for which there is not a labor category specified in the contract;
 - (C) Other direct costs (e.g., incidental services for which there is not a labor category specified in the contract, travel, computer usage charges, etc.); and
 - (D) Applicable indirect costs.
- (2) If the contractor furnishes its own materials that meet the definition of commercial item in the Guide to Judiciary Policy's Glossary of Procurement Terms, the price to be paid for such materials must not exceed the contractor's established catalog or market price, adjusted to reflect the quantities being acquired; and actual cost of any modifications necessary because of contract requirements.
- (3) Except as provided for in paragraph (b)(2) of this clause, the judiciary will reimburse the contractor for allowable cost of materials provided the contractor -
 - (i) has made payments for materials in accordance with the terms and conditions of the agreement or invoice; or
 - (ii) ordinarily makes these payments within 30 days of the submission of the contractor's payment request to the judiciary and such payment is in accordance with the terms and conditions of the agreement or invoice.
- (4) Payment for materials is subject to Clause 4-60, Allowable Cost and Payment.
- (5) The contractor may include allocable indirect costs and other direct costs to the extent they are --
 - (i) comprised only of costs that are clearly excluded from the hourly rate;
 - (ii) allocated in accordance with the contractor's written or established accounting practices; and
 - (iii) indirect costs are not applied to subcontracts that are paid at the hourly rates.
- (6) To the extent practicable, the contractor shall --
 - (i) obtain materials at the most advantageous prices available, with due regard to securing prompt delivery of satisfactory materials; and
 - (ii) take all cash and trade discounts, rebates, allowances, credits, salvage, commissions, and other benefits. When unable to take advantage of the benefits, the contractor shall promptly notify the contracting officer and give the reasons. The contractor shall give credit to the judiciary for cash and trade discounts, rebates, scrap, commissions, and other amounts that have accrued to the benefit of the contractor, or would have accrued except for the fault or neglect of the contractor. The contractor shall not deduct from gross costs the benefits lost without fault or neglect on the part of the contractor or lost through fault of the judiciary.
- (7) The judiciary will not pay profit or fee to the prime contractor on materials, except when reimbursing for commercial items under paragraph (b)(2) above.
- (c) If the contractor enters into any subcontract that requires consent under Clause 7-75, Subcontracts, without obtaining such consent, the judiciary is not required to reimburse the contractor for any costs incurred under the subcontract prior to the date the contractor obtains the required consent. Any reimbursement of subcontract costs incurred prior to the date the consent was obtained shall be at the sole discretion of the judiciary.
- (d) *Total cost.* It is estimated that the total cost to the judiciary for the performance of this contract shall not exceed the ceiling price set forth in the contract, and the contractor agrees to use its best efforts to perform the work specified in the contract and all obligations under this contract within such ceiling price. If at any time the contractor has reason to believe that the hourly rate payments and material costs that will accrue in performing the contract in the next succeeding 30 days, if added to all other payments and costs previously accrued, will exceed 85 percent of the ceiling price in the contract, the contractor shall notify the contracting officer, giving a revised estimate of the total price to the judiciary for performing this contract with supporting reasons and documentation. If at any time during the performance of this contract, the contractor has reason to believe that the total price to the judiciary for the performance of this contract will be substantially greater or less than the then stated ceiling price, the contractor shall so notify the contracting officer, giving a revised estimate of the total price for performing this contract, with supporting reasons and documentation. If at any time during the performance of this contract, the judiciary has reason to believe that the work to be required in performing this contract will be substantially greater or less than the stated ceiling price, the contracting officer will advise the contractor, giving the then revised estimate of the total amount of effort to be required under the contract.
- (d) *Ceiling price.* The judiciary will not be obligated to pay the contractor any amount in excess of the ceiling price in the contract, and the contractor shall not be obligated to continue performance if to do so would exceed the ceiling price set forth in the contract, unless and until the contracting officer notifies the contractor in writing that the ceiling price has been increased and specifies in the notice a revised ceiling that shall constitute the ceiling price for performance under this contract. When and to the extent that the ceiling price set forth in the contract has been increased, any hours expended and material costs incurred by the contractor in excess of the ceiling price before the increase will be allowable to the same extent as if the hours expended and material costs had been incurred after the increase in the ceiling price.
- (e) *Audit.* At any time before final payment under this contract the contracting officer may request audit of the invoices or vouchers and supporting documentation. Each payment previously made will be subject to reduction to the extent of amounts, on preceding invoices or vouchers, that are found by the contracting officer or authorized representative not to have been properly payable and will also be subject to reduction for overpayments or to increase for underpayments. Upon receipt and written approval of the voucher or invoice designated by the contractor as the "completion voucher" or "completion invoice" and supporting documentation, and upon

compliance by the contractor with all terms of this contract (including, without limitation, terms related to patents and the terms of paragraph (g) of this clause), the judiciary will promptly pay any balance due the contractor. The completion invoice or voucher, and supporting documentation, shall be submitted by the contractor as promptly as practicable following completion of the work under this contract, but in no event later than one year (or such longer period as the contracting officer may approve in writing) from the date of completion.

(g) *Assignment and Release of Claims.* The contractor, and each assignee under an assignment entered into under this contract and in effect at the time of final payment under this contract, shall execute and deliver, at the time of and as a condition precedent to final payment under this contract, a release discharging the judiciary, its officers, agents, and employees of and from all liabilities, obligations, and claims arising out of or under this contract, subject only to the following exceptions:

- (1) specified claims in stated amounts, or in estimated amounts if the amounts are not susceptible of exact statement by the contractor;
- (2) claims, together with reasonable incidental expenses, based upon the liabilities of the contractor to third parties arising out of performing this contract, that are not known to the contractor on the date of the execution of the release, and of which the contractor gives notice in writing to the contracting officer not more than 6 years after the date of the release or the date of any notice to the contractor that the judiciary is prepared to make final payment, whichever is earlier; or
- (3) claims for reimbursement of costs (other than expenses of the contractor by reason of its indemnification of the judiciary against patent liability), including reasonable incidental expenses, incurred by the contractor under the terms of this contract relating to patents.

(END)

4-30 Alt I Payment (Time-and-Materials and Labor-Hour Contracts, Alt I

APR 2011

(a) The judiciary will pay the contractor as follows upon submission of invoices or vouchers approved in writing by the contracting officer or the contracting officer's authorized representative:

(1) *Hourly rate.*

(i) Hourly rate means the rate(s) prescribed in the contract for payment for labor that meets the labor category qualifications of a labor category specified in the contract that are --

- Performed by the contractor;
- Performed by subcontractors; or
- Transferred between divisions, subsidiaries, or affiliates of the contractor under a common control.

(ii) The amounts will be computed by multiplying the appropriate hourly rates prescribed in the contract by the number of direct labor hours performed.

(iii) The hourly rates shall be paid for all labor performed on the contract that meets the labor qualifications specified in the contract.

Labor hours incurred to perform tasks for which labor qualifications were specified in the contract will not be paid to the extent the work is performed by employees that do not meet the qualifications specified in the contract, unless specifically authorized by the contracting officer.

(iv) The hourly rates will include wages, indirect costs, general and administrative expense, and profit. Fractional parts of an hour will be payable on a prorated basis.

(v) Vouchers may be submitted once each month (or at more frequent intervals if approved in writing by the contracting officer). The contractor will substantiate vouchers (including any subcontractor hours reimbursed at the hourly rate in the contract) by evidence of actual payment and by -

(A) individual daily job timekeeping records;

(B) records that verify the employees meet the qualifications for the labor categories specified in the contract; or

(C) other substantiation approved in writing by the contracting officer.

(vi) Promptly after receipt of each substantiated voucher, the judiciary will, except as otherwise provided in this contract, and subject to the terms of paragraph (e) of this section, pay the voucher as approved by the contracting officer or authorized representative.

(vii) Unless otherwise prescribed in the contract, the contracting officer may unilaterally issue a contract modification requiring the contractor to withhold amounts from its billings until a reserve is set aside in an amount that the contracting officer considers necessary to protect the judiciary's interests. The contracting officer may require a withhold of five percent of the amounts due under paragraph (a) of this clause, but the total amount withheld for the contract may not exceed \$50,000. The amounts withheld will be retained until the contractor executes and delivers the release required by paragraph (g) of this clause.

(viii) Unless the contract prescribes otherwise, the hourly rates in the contract will not be varied by virtue of the contractor having performed work on an overtime basis. If no overtime rates are provided in the contract and overtime work is approved in writing in advance by the contracting officer, overtime rates may be negotiated. Failure to agree upon these overtime rates will be treated as a dispute under the Disputes clause of this contract. If the contract provides rates for overtime, the premium portion of those rates will be reimbursable only to the extent the overtime has been approved in writing in advance by the contracting officer.

(b) *Materials.*

(1) For the purposes of this clause -

(i) Direct materials means those materials that enter directly into the end product, or that are used or consumed directly in connection with the furnishing of the end product or service.

(ii) Materials means -

(A) Direct materials, including supplies transferred between divisions, subsidiaries, or affiliates of the contractor under a common control;

(B) Subcontracts for supplies and incidental services for which there is not a labor category specified in the contract;

(C) Other direct costs (e.g., incidental services for which there is not a labor category specified in the contract, travel, computer usage charges, etc.); and

(D) Applicable indirect costs.

(2) If the contractor furnishes its own materials that meet the definition of commercial item in the Guide to Judiciary Policy's Glossary of Procurement Terms, the price to be paid for such materials must not exceed the contractor's established catalog or market price, adjusted to reflect the quantities being acquired; and actual cost of any modifications necessary because of contract requirements.

(3) Except as provided for in paragraph (b)(2) of this clause, the judiciary will reimburse the contractor for allowable cost of materials provided the contractor -

(i) has made payments for materials in accordance with the terms and conditions of the agreement or invoice; or

(ii) ordinarily makes these payments within 30 days of the submission of the contractor's payment request to the judiciary and such payment is in accordance with the terms and conditions of the agreement or invoice.

(4) Payment for materials is subject to Clause 4-60, Allowable Cost and Payment.

(5) The contractor may include allocable indirect costs and other direct costs to the extent they are --

(i) comprised only of costs that are clearly excluded from the hourly rate;

(ii) allocated in accordance with the contractor's written or established accounting practices; and

(iii) indirect costs are not applied to subcontracts that are paid at the hourly rates.

(6) To the extent practicable, the contractor shall --

(i) obtain materials at the most advantageous prices available, with due regard to securing prompt delivery of satisfactory materials; and

(ii) take all cash and trade discounts, rebates, allowances, credits, salvage, commissions, and other benefits. When unable to take advantage of the benefits, the contractor shall promptly notify the contracting officer and give the reasons. The contractor shall give credit to the judiciary for cash and trade discounts, rebates, scrap, commissions, and other amounts that have accrued to the benefit of the contractor, or would have accrued except for the fault or neglect of the contractor. The contractor shall not deduct from gross costs the benefits lost without fault or neglect on the part of the contractor or lost through fault of the judiciary.

(7) The judiciary will not pay profit or fee to the prime contractor on materials, except when reimbursing for commercial items under paragraph (b)(2) above.

(c) If the contractor enters into any subcontract that requires consent under Clause 7-75, Subcontracts, without obtaining such consent, the judiciary is not required to reimburse the contractor for any costs incurred under the subcontract prior to the date the contractor obtains the required consent. Any reimbursement of subcontract costs incurred prior to the date the consent was obtained shall be at the sole discretion of the judiciary.

(d) *Total cost.* It is estimated that the total cost to the judiciary for the performance of this contract shall not exceed the ceiling price set forth in the contract, and the contractor agrees to use its best efforts to perform the work specified in the contract and all obligations under this contract within such ceiling price. If at any time the contractor has reason to believe that the hourly rate payments and material costs that will accrue in performing the contract in the next succeeding 30 days, if added to all other payments and costs previously accrued, will exceed 85 percent of the ceiling price in the contract, the contractor shall notify the contracting officer, giving a revised estimate of the total price to the judiciary for performing this contract with supporting reasons and documentation. If at any time during the performance of this contract, the contractor has reason to believe that the total price to the judiciary for the performance of this contract will be substantially greater or less than the then stated ceiling price, the contractor shall so notify the contracting officer, giving a revised estimate of the total price for performing this contract, with supporting reasons and documentation. If at any time during the performance of this contract, the judiciary has reason to believe that the work to be required in performing this contract will be substantially greater or less than the stated ceiling price, the contracting officer will advise the contractor, giving the then revised estimate of the total amount of effort to be required under the contract.

(d) *Ceiling price.* The judiciary will not be obligated to pay the contractor any amount in excess of the ceiling price in the contract, and the contractor shall not be obligated to continue performance if to do so would exceed the ceiling price set forth in the contract, unless and until the contracting officer notifies the contractor in writing that the ceiling price has been increased and specifies in the notice a revised ceiling that shall constitute the ceiling price for performance under this contract. When and to the extent that the ceiling price set forth in the contract has been increased, any hours expended and material costs incurred by the contractor in excess of the ceiling price before the increase will be allowable to the same extent as if the hours expended and material costs had been incurred after the increase in the ceiling price.

(e) *Audit.* At any time before final payment under this contract the contracting officer may request audit of the invoices or vouchers and supporting documentation. Each payment previously made will be subject to reduction to the extent of amounts, on preceding invoices or vouchers, that are found by the contracting officer or authorized representative not to have been properly payable and will also be subject to reduction for overpayments or to increase for underpayments. Upon receipt and written approval of the voucher or invoice designated by the contractor as the "completion voucher" or "completion invoice" and supporting documentation, and upon compliance by the contractor with all terms of this contract (including, without limitation, terms related to patents and the terms of paragraph (g) of this clause), the judiciary will promptly pay any balance due the contractor. The completion invoice or voucher, and

supporting documentation, shall be submitted by the contractor as promptly as practicable following completion of the work under this contract, but in no event later than one year (or such longer period as the contracting officer may approve in writing) from the date of completion.

(g) *Assignment and Release of Claims.* The contractor, and each assignee under an assignment entered into under this contract and in effect at the time of final payment under this contract, shall execute and deliver, at the time of and as a condition precedent to final payment under this contract, a release discharging the judiciary, its officers, agents, and employees of and from all liabilities, obligations, and claims arising out of or under this contract, subject only to the following exceptions:

- (1) specified claims in stated amounts, or in estimated amounts if the amounts are not susceptible of exact statement by the contractor;
- (2) claims, together with reasonable incidental expenses, based upon the liabilities of the contractor to third parties arising out of performing this contract, that are not known to the contractor on the date of the execution of the release, and of which the contractor gives notice in writing to the contracting officer not more than 6 years after the date of the release or the date of any notice to the contractor that the judiciary is prepared to make final payment, whichever is earlier; or
- (3) claims for reimbursement of costs (other than expenses of the contractor by reason of its indemnification of the judiciary against patent liability), including reasonable incidental expenses, incurred by the contractor under the terms of this contract relating to patents.

(h) The terms of this clause that govern reimbursement for materials furnished are considered to be deleted.

(END)

7-75 Subcontracts JAN 2003

(a) *Definitions* as used in this clause:

"Approved purchasing system" means a contractor's purchasing system that has been reviewed and approved in writing.

"Consent to subcontract" means the contracting officer's written consent for the contractor to enter into a particular subcontract.

"Subcontract" means any contract entered into by a subcontractor to furnish products or services for performance of the prime contract or a subcontract. It includes, but is not limited to, purchase orders, and changes and modifications to purchase orders.

(b) This clause does not apply to subcontracts for special test equipment.

(c) When this clause is included in a fixed-price type contract, consent to subcontract is required only on unpriced contract actions (including unpriced modifications or unpriced purchase/delivery/task orders), and only if required in accordance with paragraph (d) or (e) of this clause.

(d) If the contractor does not have a written approved purchasing system, consent to subcontract is required for any subcontract that:

- (1) is of the cost-reimbursement, time-and-materials, or labor-hour type; or
- (2) is fixed price and exceeds either the judiciary's small purchase threshold or 5 percent of the total estimated cost of the contract.

(e) If the contractor has a written approved purchasing system, the contractor nevertheless shall obtain the contracting officer's written consent before placing the following subcontracts:

[Contracting office list conditions requiring consent]

f) (1) The contractor shall notify the contracting officer reasonably in advance of placing any subcontract or modification thereof for which consent is required under paragraph (c), (d), or (e) of this clause, including the following information:

- (i) a description of the products or services to be subcontracted;
- (ii) identification of the type of subcontract to be used;
- (iii) identification of the proposed subcontractor;
- (iv) the proposed subcontract price;
- (v) the subcontractor's current, complete, and accurate cost or pricing data and Certificate of Current Cost or Pricing Data, if required by other contract provisions;
- (vi) the subcontractor's Disclosure Statement or Certificate relating to Cost Accounting Standards when such data are required by other provisions of this contract;
- (vii) a negotiation memorandum reflecting:
 - (A) the principal elements of the subcontract price negotiations;
 - (B) the most significant considerations controlling establishment of initial or revised prices;
 - (C) the reason cost or pricing data were or were not required;
 - (D) the extent, if any, to which the contractor did not rely on the subcontractor's cost or pricing data in determining the price objective and in negotiating the final price;
 - (E) the extent to which it was recognized in the negotiation that the subcontractor's cost or pricing data were not accurate, complete, or current; the action taken by the contractor and the subcontractor; and the effect of any such defective data on the total price negotiated;
 - (F) the reasons for any significant difference between the contractor's price objective and the price negotiated; and
 - (G) a complete explanation of the incentive fee or profit plan when incentives are used. The explanation shall identify each critical performance element, management decisions used to quantify each incentive element, reasons for the incentives, and a summary of all trade-off possibilities considered.

(2) If the contractor has a written approved purchasing system and consent is not required under paragraph (c), (d), or (e) of this clause, the contractor nevertheless shall notify the contracting officer reasonably in advance of entering into any (i) cost-plus-fixed-fee

subcontract, or (ii) fixed-price subcontract that exceeds either the small purchases threshold or 5 percent of the total estimated cost of this contract. The notification shall include the information required by paragraphs (f)(1)(i) through (f)(1)(iv) of this clause.

(g) Unless the consent or approval specifically provides otherwise, neither consent by the contracting officer to any subcontract nor approval of the contractor's purchasing system will constitute a determination:

- (1) of the acceptability of any subcontract terms or conditions;
- (2) of the allowability of any cost under this contract; or
- (3) to relieve the contractor of any responsibility for performing this contract.

(h) No subcontract or modification thereof placed under this contract shall provide for payment on a cost-plus-a-percentage-of-cost basis, or any fee payable under costreimbursement type subcontracts will not exceed the fee limitations.

(i) The contractor shall give the contracting officer immediate written notice of any action or suit filed and prompt notice of any claim made against the contractor by any subcontractor or vendor that, in the opinion of the contractor, may result in litigation related in any way to this contract, with respect to which the contractor may be entitled to reimbursement from the judiciary.

(j) The judiciary reserves the right to review the contractor's purchasing system.

(k) Paragraphs (d) and (f) of this clause do not apply to the following subcontracts, which were evaluated during negotiations.

[To be completed by the Contracting Officer in the contract award]

(END)

B-5 Clauses Incorporated by Reference

OCT 2010

This procurement incorporates one or more clauses by reference, with the same force and effect as if they were given in full text.

Upon request, the contracting officer will make their full text available. Also, the full text of a clause may be accessed electronically at this address:

<http://www.uscourts.gov/procurement.aspx>.

(END)

Provision(s) Incorporated By Reference, see Provision B-1

Clause	Title	Fill-ins
3-15	Place of Performance	

3-130 Authorized Negotiators

JAN 2003

The offeror represents that the following persons are authorized to negotiate on its behalf with the judiciary in connection with this solicitation (*offeror lists names, titles, and telephone numbers of the authorized negotiators*).

Name: _____

Titles: _____

Telephone: _____

Fax: _____

Email: _____

(END)

3-20 Certification Regarding Debarment, Suspension, Proposed Debarment, and Other Responsibility Matters

MAR 2019

(a) (1) The offeror certifies, to the best of its knowledge and belief, that:

(i) the offeror and/or any of its principals:

(A) are ___ are not ___ presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any federal agency;

(B) have ___ have not ___, within the three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a public (federal, state, or local) contract or subcontract; violation of federal or state antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating federal criminal tax laws, or receiving stolen property;

(C) are ___ are not ___ presently indicted for, or otherwise criminally or civilly charged by a governmental entity with, commission of any of the offenses enumerated in paragraph (a)(1)(i)(B) of this provision;

(D) have ____, have not ____, within a three-year period preceding this offer, been notified of any delinquent federal taxes in an amount that exceeds \$3,500 for which the liability remains unsatisfied.

(1) Federal taxes are considered delinquent if both of the following criteria apply:

(i) The tax liability is finally determined. The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(ii) The taxpayer is delinquent in making payment. A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(2) Examples.

(i) The taxpayer has received a statutory notice of deficiency, under I.R.C. § 6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(ii) The IRS has filed a notice of federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. § 6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(iii) The taxpayer has entered into an installment agreement pursuant to I.R.C. § 6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.

(iv) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. § 362 (the Bankruptcy Code).

(ii) The offeror has ____ has not ____, within a three-year period preceding this offer, had one or more contracts terminated for default by any federal agency.

(2) "Principal," for the purposes of this certification, means an officer; director; owner; partner or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division, or business segment, and similar positions).

This certification concerns a matter within the jurisdiction of an agency of the United States and the making of a false, fictitious, or fraudulent certification may render the maker subject to prosecution under 18 U.S.C. § 1001.

(b) The offeror shall provide immediate written notice to the contracting officer if, at any time prior to contract award, the offeror learns that its certification was erroneous when submitted or has become erroneous by reason of changed circumstances.

(c) A certification that any of the items in paragraph (a) of this provision exists will not necessarily result in withholding of an award under this solicitation. However, the certification will be considered in connection with a determination of the offeror's responsibility. Failure of the offeror to furnish a certification or provide such additional information as requested by the contracting officer may render the offeror nonresponsible.

(d) Nothing contained in the foregoing will be construed to require establishment of a system of records in order to render, in good faith, the certification required by paragraph (a) of this provision. The knowledge and information of an offeror is not required to exceed that which is normally possessed by a prudent person in the ordinary course of business dealings.

(e) The certification in paragraph (a) of this provision is a material representation of fact upon which reliance was placed when making award. If it is later determined that the offeror knowingly rendered an erroneous certification, in addition to other remedies available to the judiciary, the contracting officer may terminate the contract resulting from this solicitation for default.

(END)

3-30 Certificate of Independent Price Determination JAN 2003

(a) The offeror certifies that:

(1) the prices in this offer have been arrived at independently, without, for the purpose of restricting competition, any consultation, communication, or agreement, with any other offeror or with any competitor relating to:

(A) those prices;

(B) the intention to submit an offer; or

(C) the methods or factors used to calculate the prices offered.

(2) The prices in this offer have not been and will not be knowingly disclosed by the offeror, directly or indirectly, to any other offeror or contract award unless otherwise required by law; and

(3) no attempt has been made or will be made by the offeror to induce any other concern to submit or not to submit an offer for the purpose of restricting competition.

(b) Each signature on the offer is considered to be a certification by the signatory that the signatory:

(1) is the person in the offeror's organization responsible for determining the prices in this offer, and that the signatory has not participated, and will not participate, in any action contrary to paragraphs (a)(1) through (a)(3) of this provision; or

(2) (i) has been authorized, in writing, to act as agent for the following principals in certifying that those principals have not participated, and will not participate, in any action contrary to paragraphs (a)(1) through (a)(3) of this

provision _____ (insert full name of person(s) in the offeror's organization responsible for determining the prices in this offer, and the title of his or her position in the offeror's organization);

(ii) as an authorized agent, does certify that the principals named in subdivision (b)(2)(i) of this provision; have not participated, and will not participate, in any action contrary to paragraphs (a)(1) through (a)(3) of this provision; and

(iii) as an agent, has not personally participated, and will not participate, in any action contrary to paragraphs (a)(1) through (a)(3) of this provision.

(c) If the offeror deletes or modifies paragraph (a)(2) of this provision, the offeror shall furnish with its offer a signed statement setting forth in detail the circumstances of the disclosure.

(END)

3-5 Taxpayer Identification and Other Offeror Information APR 2011

(a) *Definitions*

"Taxpayer Identification (TIN)," as used in this provision, means the number required by the Internal Revenue Service (IRS) to be used by the offeror in reporting income tax and other returns. The TIN may be either a social security number or an employer identification number.

(b) All offerors shall submit the information required in paragraphs (d) through (f) of this provision to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d), reporting requirements of 26 U.S.C. 6041, 6041A and implementing regulations issued by the IRS. If the resulting contract is subject to the payment reporting requirements, the failure or refusal by the offeror to furnish the information may result in a 31 percent reduction of payments otherwise due under the contract.

(c) The TIN may be used by the government to collect and report on any delinquent amounts arising out of the offeror's relationship with the government (31 U.S.C. 7701(c)(3)). If the resulting contract is subject to payment recording requirements, the TIN provided hereunder may be matched with IRS records to verify the accuracy of the offeror's TIN.

(d) *Taxpayer Identification Number (TIN):*

Â _____

☐ TIN has been applied for.

☐ TIN is not required, because: _____

☐ Offeror is a nonresident alien, foreign corporation or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;

☐ Offeror is an agency or instrumentality of a foreign government;

☐ Offeror is an agency or instrumentality of the federal government.

(e) *Type of organization:*

☐ sole proprietorship;

☐ partnership;

☐ corporate entity (not tax-exempt);

☐ corporate entity (tax-exempt);

☐ government entity (federal, state or local);

☐ foreign government;

☐ international organization per-26 CFR 1.6049-4;

☐ other _____.

(f) Contractor Representations

The offeror represents as part of its offer that it is ☐ , is not ☐ , 51% owned and the management and daily operations are controlled by one or more members of the selected socio-economic group(s) below:

☐ Women Owned Business

☐ Minority Owned Business (if selected, then one sub-type is required)

☐ Black American Owned

☐ Hispanic American Owned

☐ Native American Owned (American Indians, Eskimos, Aleuts, or Native Hawaiians)

☐ Asian-Pacific American Owned (persons with origins from Burma, Thailand, Malaysia, Indonesia, Singapore, Brunei, Japan, China, Taiwan, Laos, Cambodia (Kampuchea), Vietnam, Korea, The Philippines, U.S. Trust Territory of the Pacific Islands (Republic of Palau), Republic of the Marshall Islands, Federated States of Micronesia, the Commonwealth of the Northern Mariana Islands, Guam, Samoa, Macao, Hong Kong, Fiji, Tonga, Kiribati, Tuvalu, or Nauru)

☐ Subcontinent Asian (Asian-Indian) American Owned (persons with origins from India, Pakistan, Bangladesh, Sri Lanka, Bhutan, the Maldives Islands, or Nepal)

☐ Individual/concern, other than one of the preceding.

(END)

6-50 Representation of Rights in Data

APR 2013

(a) This solicitation sets forth the judiciary's known delivery requirements for data (as defined in Clause 6-60, Rights in Data - General). Any data delivered under the resulting contract will be subject to Clause 6-60, Rights in Data - General included in this contract. Under Clause 6-60, a contractor may withhold from delivery data that qualify as limited rights data or restricted computer software, and delivery form, fit, and function data instead. Clause 6-60 also may be used with its Alternates I and/or II to obtain delivery of limited rights data or restricted computer software, marked with limited rights or restricted rights notices, as appropriate.

(b) By completing the remainder of this paragraph, the offeror represents that it has reviewed the requirements for the delivery of technical data or computer software and states (*offeror check appropriate block*):

☐ None of the data proposed for fulfilling the data delivery requirements qualifies as limited rights data or restricted computer software; or

☐ Data proposed for fulfilling the data delivery requirements qualify as limited rights data or restricted computer software and are identified as follows:

(c) Any identification of limited rights data or restricted computer software in the offeror's response is not determinative of the status of the data should a contract be awarded to the offeror.

(END)

Provision(s) Incorporated By Reference, see Provision B-1

Clause	Title	Fill-ins
3-210	Protests	
3-85	Explanation to Prospective Offerors	
3-95	Preparation of Offers	
7-60	Judiciary Furnished Property or Services	

2-1 Request for Information or Solicitation for Planning Purposes

JAN 2003

The judiciary does not intend to award a contract on the basis of this solicitation or to otherwise pay for the information solicited.

(1) Although "offer" and "offeror" are used in this Request for Information, your response will be treated as information only. It will not be used as an offer.

(2) This solicitation is issued for the purpose of:

Jury Management System.

(END)

3-100 Alt I Instructions to Offerors, Alternate I

JAN 2003

Substitute the following paragraph for paragraph (f)(4):

(4) The judiciary intends to evaluate offers and award a contract after conducting discussions with offerors whose offers have been determined to be within the competitive range. If the contracting officer determines that the number of offers that would otherwise be in the competitive range exceeds the number at which an efficient competition can be conducted, the contracting officer may limit the number of offers in the competitive range to the greatest number that will permit an efficient competition among the most highly rated offers. Therefore, the offeror's initial offer shall contain the offeror's best terms from a price and technical standpoint.
(END)

4-1 Type of Contract

JAN 2003

The judiciary plans to award a indefinite delivery indefinite quantity (IDIQ) type of contract under this solicitation, and all offers shall be submitted on this basis. Alternate offers based on other contract types will not be considered.

(END)

B-1 Solicitation Provisions Incorporated by Reference

OCT 2010

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the contracting officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this address:

<http://www.uscourts.gov/procurement.aspx>.

(END)

L-1 Instructions to Offerors

This solicitation is being competed following the procedures found in section § 330 "Standard Competitive Contracting Procedures" of the "Guide to Judiciary Policy." The Judiciary intends to make a single award for this IDIQ and award Task Order 0001 from this solicitation. The period of performance for the IDIQ contract is for a seven-year ordering period with a six-month option period. The Judiciary intends to award this contract by TBD.

Offerors are responsible for including sufficient details to permit a complete and accurate evaluation of each proposal. Offerors are cautioned that "parroting" of the technical requirements in the solicitation does not demonstrate an understanding of the requirement or capability to perform. Offerors are responsible for including sufficient details to permit a complete and accurate evaluation of each proposal. Proprietary information shall be clearly marked.

L.1.1 – RFI - Solicitation Questions

All questions regarding this solicitation shall be emailed to aj_lee@ao.uscourts.gov and vanessa_jackson@ao.uscourts.gov by 12:00 P.M. (Eastern) on Monday, April 6, 2026.

PLEASE USE THE ATTACHED EXCEL QUESTION FORM TO CAPTURE YOUR RFI QUESTIONS. Answers to questions regarding the solicitation MAY be provided to all offerors on SAM.gov. The final RFP may be revised in response to your questions. All questions must be submitted in writing. Telephoned questions will not be accepted.

L.1.2 – Proposal Due Date

TBD

L.2 - Volume Instructions

L.3 - Technical Proposal - Performance Work Statement (PWS)

L.4 - Price Volume

L.5 - Business Volume

L.6 - Proposal Submission Instructions

Provision(s) Incorporated By Reference, see Provision B-1

Clause	Title	Fill-ins
2-85A	Evaluation Inclusive of Options	
3-70	Determination of Responsibility	

M-1 Evaluation Criteria

M.1.1 – General

This procurement is being conducted using the procedures found in the Guide to Judiciary Policy, Volume 14, § 330 “Standard Competitive Contracting Procedures,” and an IDIQ contract will be made to the offeror whose proposal conforms to the solicitation and is determined to be most advantageous to the Government in accordance with the requirements stated below.

The evaluation will be conducted using the evaluation criteria set forth in this section. Each initial proposal should contain the offeror’s best terms from a technical and price standpoint as the government reserves the right to award without discussions. Proposal clarification / revision requests may be issued which encompass any and all written documentation submitted in response to the RFP as may be deemed necessary by the Contracting Officer to fully explore and evaluate the merits of proposals submitted.

The Government’s intent is to issue Task Order 0001, upon award of the base IDIQ contract, which will satisfy the IDIQ’s minimum guarantee.

M.1.2 Evaluation Criteria and Award Selection

M.1.2.1 – Award Using Best Value Determination Method

The Government will award an IDIQ contract resulting from this solicitation to the responsible offeror whose proposal conforming to the solicitation will be most advantageous to the Government, price and other factors considered.

The following factors shall be used to evaluate offers:

Factor 1:TBD

Factor 2: TBD

Factor 3: TBD

Factor 4: Price

Award will be made to the offeror whose offer represents the best value to the Government, given the outcome of the Government’s evaluation of each offeror’s technical proposal and price. In selecting the best overall value, the Government considers the non-priced factors (factors 1 through 3) equal in importance. The non-priced factors when combined are significantly more important than price. A confidence rating will be used to rate each non-price factor. The Government may make trade-offs between technical excellence and price when determining which proposal offers the best value. Trade-offs will be based on the Government’s assessment of whether the technical excellence offered provides added value, added capability, and/or reduced risk. The importance of pricing in the evaluation will increase with the degree of equality of the technical proposals or when the price is so significantly high as to diminish the value of the technical superiority.

Award may be made on initial proposal submission or after clarifications and/or discussions are held with offerors the Government determined to have a reasonable chance of being selected for award.

M.1.2.2 – Proposal Evaluation Criteria

Technical proposals will be evaluated using the following non-priced evaluation factors:

Factor 1: TBD

Factor 2: TBD

Factor 3: TBD

M.1.2.2.1 – Technical Approach

TBD

M.1.2.2.2 – FACTOR 2

TBD

M.1.2.2.3 - FACTOR 3

TBD

M.1.2.2.4 - Evaluation Methodology

The Government will assign Confidence Ratings when evaluating Factors 1 and 2. A rating will be given to each factor. The Confidence Ratings are defined as follows:

Confidence Rating Description

XXXXXXXXXXXXXXXXXX

The offerors will not be ranked numerically.

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M.5 - Price Evaluation

M.1.2.3 – Price Evaluation

The Judiciary will apply one or more price analysis techniques described in the Guide to Judiciary Policy, Volume 14, § 345.40 and 440 to evaluate the offeror's price to determine if the Judiciary is receiving a fair and reasonable price and to determine if the proposal is the best value in conjunction with the technical proposal.

This includes a comparison of proposed prices received in response to a competitive solicitation. The total evaluated price will be the sum of all contract line-item numbers listed on the base IDIQ contract (inclusive of all options) and Task Order 0001.

Any offer that is materially unbalanced as to prices for basic and ordering years may be rejected. Unbalanced pricing exists when, despite an acceptable total evaluated price, the price of one or more contract line items is determined by the judiciary to be significantly overstated or understated. For the total evaluated price, the Government will evaluate all ordering periods and include the option to extend services for up to six months under Judiciary clause 2-90C. Evaluation of the options to extend the period of performance under clauses 2-90C does not obligate the Government to exercise the option period. In accordance with 2-90C, the option to extend services for an additional six months using Judiciary clause 2-90C will be incorporated within the award resulting from this RFP. This optional extension up to six months will be considered to be within the total project scope for purposes of evaluation and award justification.

All offerors are required to complete all of PROPOSED PRICING ATTACHMENT. The minimum guarantee of \$1,500.00 will be satisfied through the issuance of Task Order 0001. The submitted proposed pricing will be evaluated to determine that the price is fair and reasonable. The quantities in Attachment X - "Web-Based JMS Price TBD" spreadsheet are for purposes of price evaluation.

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